

QUÆSTIO IV.

With what certainty is it to be held that the propositions condemned by Alexander VII on the 24th day of September 1665 and the 18th of March 1666, at least as scandalous, are truly such, prohibited and condemned, and devoid of all probability, and to be banished from all disputation, public as well as private, unless perhaps by way of impugning them; and to what do these Decrees oblige?

1. I SUPpose that the aforesaid opinions condemned by Alexander VII are five above forty, which I have transcribed at the end of the Treatise *de Appellationibus*, together with the entire Decrees published by His Holiness upon this matter, with strict prohibition, under precept and excommunication *latæ sententiæ* reserved to the Supreme Pontiff for the time being; against any persons whatsoever, though resplendent with whatsoever dignities, that no one teach, defend, or publish them, either jointly or severally, or treat of them, even disputatively, publicly or privately, unless perhaps by way of impugning them: and lest they reduce the aforesaid opinions, or any one of them, to practice, he strictly forbids it, in virtue of holy obedience and under the threat of the divine judgment, to all Christ's faithful of whatsoever condition, dignity, and state, even such as are worthy of most special mention. All which the aforesaid Pope Alexander VII established, decreed, and prohibited, sitting for tribunal in the Sacred Congregation of the Most Eminent Cardinals of the Holy Roman Church, Inquisitors General against heretical pravity for the universal Christian commonwealth, their votes having been heard one by one upon each single one of these opinions, and after a sedulous and accurate discussion and examination of the said opinions had beforehand, not only by very many Masters in Sacred Theology, but afterwards by the same Most Eminent Lords Cardinals as well. All which is plain from the said Decrees, which I render exactly at the end of my fifth Volume, entitled *de Appellationibus*.
2. *Secondly* I suppose that the Supreme Pontiffs sometimes make their declarations as such, and these issue and go forth from them as from men sitting in the Apostolic See of St. Peter; but sometimes they proceed from them, not as from Vicars of Christ the Lord and successors of the Prince of the Apostles, but as from particular Doctors. Concerning which twofold manner of proceeding in the Declarations of the Supreme Pontiffs, there are to be seen Francisco Suárez, *tomo 4. de Religione, lib. 3. cap. 4. num. 8. in fine, & num. 11. pag. mihi 460.* Cardinal Bellarmine, *tom. 1. lib. 4. de Romano Pontifice, cap. 2. in principio, & cap. 6.* Pedro Hurtado de Mendoza, *tract.*

de Fide, disputat. 37. §. 2. Francisco Amico, tom. 4. dicto tract. disp. 2. sect. 4. num. 145. & 239. disp. 7. sect. 1. n. 37. Juan de Cárdenas, in Crisi Theologica, par 1. tract. 1. disp. 9. c. 20. art. 3.

3. *Thirdly* I suppose that the Supreme Pontiff, as such, sometimes declares, decrees, and defines in Councils, either by being present at them or by confirming them when already celebrated; sometimes with previous consultations of the Sacred Congregations of the Cardinals of the Holy Roman Church employed, and also, as for the most part, of very many Doctors most skilled in Sacred Theology and in Ecclesiastical Discipline, not only summoned into a public assembly, but also consulted privately; and sometimes, finally, upon informations or proofs received through the depositions of men worthy of credence. Concerning which Bellarmine, *dicto cap. 2. Amicus, disp. 7. sect. 1. citat. à num. 23. & signanter num. 36.*

4. *Fourthly* I suppose that the Supreme Pontiff, as such, defines matters of faith, and those things which pertain to morals for the universal good of the faithful, by force of the authority and power promised to Peter the Prince of the Apostles by Christ the Lord, and in him to the legitimate Pontiffs his successors, *Matt. 16. Thou art Peter, and upon this rock I will build my Church: and the gates of hell shall not prevail against it. And To thee will I give the keys of the kingdom of heaven: whatsoever thou shalt bind upon earth, it shall be bound also in heaven: and whatsoever thou shalt loose upon earth, it shall be loosed also in heaven:* and delivered to him; *Luke 22. I have prayed for thee, that thy faith fail not: and thou, being once converted, confirm thy brethren:* and also *John 21. Feed my lambs, and feed my sheep:* the doctrine, namely, not only of faith, but also of morals. Let there be seen Cano, *de Locis Theologicis, lib. 6. cap. 3. Suárez, tract. de Fide, disp. 5. sect. 8. num. 1. & 7. & tom. 4. de Religione, tract. 10. c. 4. num. 5. & 6. Cardinal Cajetan, in Opusculis, tom. 1. tract. 3. de Romani Pontificis institutione, cap. 12. vers. Ad hujus, juncto vers. Arguitur,* in which place he most learnedly proves that St. Peter, by Christ's institution, has a successor in the Pontificate and in the Primacy of the Catholic Church: and *cap. 13.* he establishes and proves that the Roman Pontiff succeeds St. Peter in the Pontificate of the whole Church: and *cap. 14.* he weaves a long series of authorities of the ancient Fathers of the Church and of Councils affirming that in Peter, and in the Roman Pontiff, Peter's successor for the time being, the Pontificate of the whole Church was instituted: namely, of Cyril, Patriarch of Alexandria, *in lib. Thesau.* Cyril, Patriarch of Jerusalem. St. Anacletus Martyr. St. Chrysostom, *homil. 55. super Mathæum.* Maximus, *in epist. Orientalibus directa.* Martellus [?], Pope and Martyr, cited *in cap. Rogamus vos, 24. quæstio 1.* Cyprian Martyr, cited *in cap. Loquitur Dominus, eadem causa, & quæst.* St. Ambrose, cited *in cap. Fidelior, 50. dist.* and in other places; St. Jerome and St. Augustine, in very many places likewise. St. Gregory the Great, *lib. 4. Registri, epist. 32. ad Mauritium Imperatorem.* St. Leo I, *sermone 3. de Anniversario suæ assumptionis die.* The Venerable Bede, upon that

text of *John 1. And Jesus looking upon him*. St. Bernard, in very many places, especially in *Epist. 237. ad Eugenium III. Epist. 242. ad Romanos, quando discesserunt à Papa. Epist. 131. ad Mediolanenses*. St. Thomas, in *4. contra Gentes, cap. 76*. The Council celebrated in the time of the Emperors Diocletian and Maximian, cited in *cap. Nunc autem, 21. dist.* The Council of Chalcedon. The Council of Carthage. The Council of Milevis. The Council of Constance. The Council of Florence.

5. To prove the same thing, Cano also heaps up as many authorities, *dicto l. 6. c. 4.*, namely of Pope Anacletus in *Epist. 1. de Oppressione Episcoporum*. Evaristus. Sixtus I, *ad Gallicanas Ecclesias*. Eleutherius, *ad easdem Ecclesias*. Pius I, in *Epist. ad omnes Ecclesias*. Victor, in *Epist. ad Theophilum*. Zephyrinus, in *Epist. ad Episcopos Sicilianos*, Marcellus, *ad Episcopos Antiochenæ Ecclesiæ*, Eusebius, *ad Episcopos Campaniæ, & Tusciæ*, Melchiades, in *Epist. ad Hispaniarum Episcopos*, Mark, *ad Athanasium*, Julius, in *Epist. ad Orientales Episcopos*, & in *Epist. ad Episcopos trium Conciliorum Africarum*, & in *Epist. ad Prosperum*, & cæteros *Numidiæ Orthodoxos Episcopos*, Innocent I, *ad Concilium Carthaginense*, & *ad Milevitanum*, Leo, in *epistola 54. ad Anastasium*, & *epist. 67. ad Episcopos provinciæ Viennensis*, Gelasius, *ad Anastasium*, and in the Decrees which he passed with seventy Bishops, & in *epist. ad Episcopos Dardaniæ*, Vigilius, in *Decretis suis, cap. ult.* Pelagius II, *ad Episcopos, qui convenerant in Constantinopolim*, Gregory I, in *Epist. ad Augustinum. Anglorum Episcopum*, and of other Pontiffs, whose testimonies are had *dist. 12. 17. 19. 20. 21. 22. & dist. 80. cap. Urbes, dist. 96. cap. Bene, & causa 24. q. 1.* and in the Extra, *cap. Significasti, de Electione, cap. Antiqua, de Privilegiis, cap. Majores, de Baptismo, cap. Fundamenta, de Elect. in 6.* the Extravagant *unam sanctam*, renewed and afterwards approved by the Lateran Council under Leo X.
6. Although, besides so many authorities cited for the establishing of my supposition, I could easily adduce and heap up many others, I have thought to put an end to them by recounting the Council of Florence, thus defining: *We define that the Holy Apostolic See and the Roman Pontiff hold the Primacy over the whole world, and that the Roman Pontiff himself is the successor of Blessed Peter the Prince of the Apostles, and the true Vicar of Christ, and the head of the whole Church, and the Father and Teacher of all Christians; and that to him, in Blessed Peter, full power of feeding, ruling, and governing the universal Church was delivered by Our Lord Jesus Christ, even as is also contained in the acts of the Ecumenical Councils and in the sacred Canons*: Thus the Council of Florence, in *Decreto Unionis Græcorum*, &c. And likewise by rendering Cajetan, *dicto cap. 14. à n. 30.*, breaking forth into what follows: I pass over (says he) the throng of Canons and Decrees (which no one can number) that hold the same: for from the things which we have brought forward it is so evidently clear *that the Roman Pontiff, Peter's successor, was instituted by*

Christ in Peter as Pastor of the whole Church, that no place is left for doubt. But if anyone after these things is found hesitating, he is either untaught, or inept, or savors with the heretics or schismatics, or certainly is not a Christian; for whoever seeks mathematical certitude in all things is exceedingly unlearned and indocile, as the Philosophers teach. It is proper to heretics and schismatics to use the sacred Scripture, but according to that sense in which they themselves make it sound. But the wisdom of Christians who are truly Catholic understands the sacred Scripture according to that sense which the Holy Doctors, which the Sacred Councils strengthened by Apostolic authority, interpret. Whoever rejects this manner of knowing Christian truth is not a Christian: he who withdraws from this way is found an unbeliever. For if license to stray from this way be admitted, it is lawful to call into doubt with Arius the one substance of the Trinity; that the Holy Spirit also proceeds from the Son will still be ambiguous with the ancients; it is doubted that the bread in the Sacrament of the Altar is converted into the Body of Christ. For all these things have been rendered certain to Christians, and to be held with undoubted faith, by no other way or authority than by the interpretation of Sacred Scripture according to the documents of the Saints, and by the definition of the Sacred Councils confirmed by Apostolic authority. Wherefore, since the texts of the Gospel are at hand to the purpose, and the doctrine of the Saints in agreement upon the point lies open, with not a single one of the Saints resisting, and since the definition of the Sacred Councils with Apostolic authority is found, and every age of Christians from Peter down to this day is found to have confessed this in the Holy Catholic Church, and the testimonies of the remaining Doctors are innumerable: it is thus rendered certain that the Roman Pontiff, Peter's successor, instituted in Peter by Christ, is the Pastor of the whole Church, so that a more certain faith cannot be had. Amen.

7. Thus far the Most Eminent Cajetan, whom the most illustrious Cano follows — formerly Primary interpreter of Sacred Theology in the University of Salamanca, and afterwards Bishop of the Canaries — in his most learned volume *de Locis Theologicis*, lib. 6. cap. 3. *Proposit. 3. pag. mihi 215.*, putting forth what follows: that, Peter being dead, there is by divine right one who succeeds him in the same authority and power. For, since the sheep of Christ were to be until the consummation of the world, he will surely be a fool who shall think that Christ substituted a temporary Pastor for a perpetual sheepfold. What therefore the Lord, in instituting the pastoral office of the Church, conferred upon the first Pastor, that he is understood to have conferred ordinarily upon every successor whatsoever, as Cajetan, *De Primatu Ecclesiae Romanæ*, c. 12., most eruditely proved.
8. Moreover, the kingdom of Christ was to be eternal: therefore neither was the principate of the Church temporary. Otherwise, if Peter's power has not been transferred to those who came after, neither shall we acknowledge that the power of the other Apostles was transmitted to the succeeding Bishops. Thus there will now

be in the Church no power either of Bishops or of Priests. Which is a manifest error in the faith. And below, after very many testimonies drawn from the Old Testament have been adduced to prove his proposition, he adds: Not therefore, that we may return to our purpose, was one house left without a father of the family, one city without a ruler, one sheepfold without one shepherd, when Peter was dead; but there is someone who succeeds him in the authority of ruling and feeding the sheep. And again below he continues: *Therefore the Supreme Pontiff instituted by Christ has as much authority in the Church as is necessary for containing the citizens of the Christian commonwealth in faith, in religion, in duty:* But it must needs be that controversies concerning faith and religion arise among us, for the composing of which, if there be no Judge given by Christ to whom every such question might at length be referred, it would be without end, and there would be perpetual dissension, and as many and as dissonant opinions concerning faith and concerning religion as there are heads in the Church, and as diverse as those heads are. For which reasons, if the unity, charity, and fellowship of the Church must be preserved, it is surely necessary that one Prince be left by Christ, who, no otherwise than Peter, may be able to settle the disputes of those who disagree and to resolve questions. All this that Doctor, with whom Suárez agrees, *tract. de Fide, disputat. 5. sect. 8. n. 1.*

9. *Fifthly I suppose* that the Supreme Pontiffs can be considered, in one way, as particular Doctors. *Secondly*, as Pontiffs, but alone. *Thirdly*, as Pontiffs, but with the accustomed assembly of Counsellors adjoined. *Fourthly*, as Pontiffs, but together with a General Council. So Cardinal Bellarmine, *tom. 1. lib. 4. de Potestate Spirituali Summi Pontificis, cap. 2.*, and other Doctors commonly. *Fifthly*, as Pontiffs, but with expert consultors adjoined, even if he does not summon them into a public assembly. So Francisco Amico, *in Cursu Theologico, tom. 4. disput. 7. sect. 1. n. 36.* Granado, presently to be cited.
10. *Sixthly I suppose* that the sentences and Decrees of the Supreme Pontiff are sometimes concerned with universal matters, which are proposed to the whole Church, such as are the Decrees concerning Faith and the general precepts of morals; sometimes with particular matters, which pertain to few, such as are nearly all controversies of fact, as whether such a one is to be promoted to a bishopric, whether he was lawfully promoted, whether he seems to be deposed. So Bellarmine in the place just cited. Granado, *controv. 1. de Fide, tract. 7. disp. 2. sect. 1. num. 2. & seqq.*
11. *Seventhly I suppose* that the Supreme Pontiff, even as such, and with the assembly of counsellors alone, nay even with a General Council, can err in particular controversies of fact, which depend chiefly upon information and the testimonies of

men. So Bellarmine, in the place already alleged, from the common consent of all, both Catholics and heretics, and Granado, *controvers 1. de Fide, tract. 7. disput. 3. sect. 5. n. 21. & 24.*

12. *Eighthly I suppose* that the Supreme Pontiff, as a private Doctor, can err even in universal questions of law, both of Faith and of morals; and that from ignorance, as sometimes happens to other Doctors. So teach Bellarmine, *ubi supra*, from the same common consent of Catholics and heretics, and Amicus, *dicta sect. 1. num. 37.*
13. *Ninthly I suppose* that all Catholics agree among themselves, though not with the heretics, in this: that the Supreme Pontiff, alone or with his particular council, determining something in a doubtful matter, whether he can err or not, is to be obediently hearkened to by all the faithful. So Bellarmine, *dicto lib. 4. cap. 2. vers. Deinde, & cap. 5. vers. Ac ut rem, in fine*, there: *although it is not for subjects to doubt concerning this matter, but simply to obey.* And Suárez, *de Fide, disp. 5. sect. 8. num. 9.*, there: *although even in these things nothing is to be judged rashly.*
14. *Tenthly I suppose* that all Catholics agree among themselves, though not with the heretics, in this: that the Supreme Pontiff with a General Council cannot err in framing Decrees of Faith, nor in general precepts of morals. So Bellarmine, *dicto cap. 2. & versic. Deinde.*
15. *Eleventhly I suppose*, with Diana Coordinatus, *tom. 9. tract. 5. resol. 1. n. 2.*, Bellarmine *dicto cap. 2. vers. Secunda opinia*, and with Amicus, *tom. 4. disp. 7. sect. 1. num. 2.*, that certain Catholics of Paris, Alfonso de Castro, *lib. 5. adversus hæreses, cap. 2.*, and Adrian VI, in *Quæstion. de Confirm.*, have opined that the Supreme Pontiff, as Pontiff, can be a heretic and teach heresy, if he defines without a General Council, and that this has in fact sometimes happened: because they place infallibility in matters of Faith not in the Pope, but in the Church or in a General Council; not, however, as in the subject in which the power of defining formally resides, but as in a previous condition without which the Holy Spirit does not assist the definition of the Pontiff, as Amicus notes, who nevertheless holds better, *num. 36.*, that for the Holy Spirit to assist the Pontiff after the human manner, when defining controversies of Faith *ex Cathedra*, it suffices if, before he defines them, he consult Doctors and experts, even though he do not summon them into a public assembly.
16. The said Authors, for the founding of their opinion, adduce several Supreme Pontiffs whom they attest to have fallen away from the Faith: namely Zephyrinus, Liberius, Marcellinus, Felix, Leo I, Gelasius, Anastasius, Vigilius, Honorius I, Gregory III.

17. Their opinion, however, is improbable in the judgment of Malderus, 2. 2. q. 10. art. 1., and Wiggers, *ibidem*, tract. de Pontifice, dub. 5. n. 177., in Diana, resol. 4. num. 2. That it is rash is held, in the same author, by Stapleton, contr. 3. q. 4., Castillo, lib. 3. Sentent. tom. 2. disp. 16. q. 6. n. 4., Aragón, 2. 2. q. 1. de Pontifice, art. 10., Fragoso, de Republica, tom. 2. lib. 1. disp. 1. §. 3., and others. That it is heretical, Diana thinks, n. 3., with Suárez, de Fide, disp. 5. sect. 8. n. 4., Pitigianis, in 3. sentent. tom. 3. disp. 25. q. 2. art. 4. concl. 2., Valentia, tom. 3. q. 1. pun. 7. §. 4., Bañez, 2. 2. q. 1. art. 10. dub. 2., who asserts that the Pope speaking *ex Cathedra* outside a Council cannot err, and that this is to be held as an Apostolic tradition. And with Amicus, in *Cursu Theologico*, tom. 4. disp. 7. q. 1. n. 33. And that at the least the opinion of Castro, Adrian, Gerson, and Almain is erroneous and next to heresy is judged by Bellarmine, dicto cap. 2. versic. *Ex his*, joined with vers. *Secunda opinio*, which he proves at large cap. 3., where, this assertion being laid down: *The Supreme Pontiff, when he teaches the whole Church in those things which pertain to Faith, can in no case err*: he first proves it from that of Luke 22. *Simon, Simon, behold Satan hath desired to have you, that he may sift you as wheat: but I have prayed for thee, that thy faith fail not: and thou, being once converted, confirm thy brethren*. Which passage the aforesaid Cardinal expounds in three ways. But the third exposition, which he himself calls the true one, is that the Lord obtained two privileges for Peter by means of that prayer: one, that he himself could never lose the Faith, however much he were tempted by the devil — which is something more than the gift of perseverance: for he is said to persevere unto the end who, although he sometimes fall, yet rises again, and at the end is found faithful; but for Peter the Lord obtained that he could never fall, as regards the Faith. Which privilege Diana grants to Peter, tom. 9. tract. 5. res. 12. n. 14.

18. The other privilege is that he himself, as Pontiff, could never teach anything against the Faith; or that in his See there should never be found one who should teach against the true Faith. Of which privileges (says Bellarmine) the first perhaps did not flow down to those who came after; but the second, without doubt, flowed down to those who came after, or to his successors.

19. For the granting of the first privilege, made to the person of Peter, there are at hand very many testimonies of the Fathers; which it is well to recount.

St. Augustine, lib. de Correptione, & gratia, cap. 8., spoke thus: *When he prayed that his faith should not fail, he prayed that he might have in the Faith a most free, most strong, most invincible, most persevering will*.

1. St. Chrysostom, homilia 83. in Mathæum, thus confessed: *He did not say, Thou shalt not deny; but, that thy faith fail not. For by his care and favor it came to pass that Peter's faith did not utterly vanish away*.

2. Theophylact, in cap. 22. *Lucæ*, said likewise: *Although for a short time thou art to be shaken, thou hast the seeds of Faith hidden away; and even if the breath of the assailant cast off the leaves, yet the root shall live, and thy faith shall not fail.*

Expounding which passage, Bellarmine speaks thus: By an elegant likeness he explains that Peter, by denying Christ, lost the confession of Faith which is made with the mouth — for the leaves signify words — but that he did not lose the Faith by which one believes with the heart unto justice. And he adds that Prosper expounds the said passage of Luke in the same way, *lib de Vocatione gentium, cap. ultimo.*

3. For the granting of the second privilege there are likewise at hand as many testimonies of the Saints and of the ancient Fathers.

Saint Lucius I, Pope and Martyr, in *Epistola 1. ad Episcopos Hispaniæ, & Galliæ*, wrote thus: *The Roman Church is Apostolic, and the mother of all Churches, which is proved never to have erred from the path of Apostolic tradition, nor to have succumbed, depraved by heretical novelties, according to the promise of the Lord himself, saying: I have prayed for thee, &c.*

1. Felix I, in *epist. ad Benignum*, thus spoke concerning the Roman Church: *And in its beginning it received the norm of the Christian Faith from its authors, the Princes of Christ's Apostles; it remains unimpaired, according to that: I have prayed for thee, &c.*
2. St. Leo I, *sermone 3. de Assumptione sua ad Summum Pontificatum*, spoke thus: *A special care of Peter is undertaken by the Lord, and prayer is made properly for the faith of Peter, as though the state of the others would be the more secure if the mind of the Prince were not overcome. In Peter therefore the fortitude of all is fortified, and the help of divine grace is so ordered that the firmness which is bestowed upon Peter through Christ may be conferred upon the other Apostles through Peter.* Thus Leo; where, according to Bellarmine's interpretation, he recognizes both privileges of Peter: the first, when he says: *If the mind of the Prince were not overcome*; the second, when he subjoins: *The firmness which is bestowed upon Peter through Christ is conferred upon the rest through Peter.* For firmness is not conferred upon others save by setting forth the true Faith.
3. Pope Agatho, in *Epist. ad Constantinum Imperatorem*, which was read in the Sixth Synod, *actione 4.*, and afterwards, *act. 8.*, was approved by all the Fathers, says: *The true rule of Faith, which both in prosperity and in adversity the Apostolic Church of Christ has vigorously held, which by the grace of God is proved never to have erred from the path of Apostolic tradition, nor ever to have succumbed, depraved by heretical novelties, because it was said to Peter: Simon, Simon, behold Satan, &c. But I have prayed for thee, &c. Here the Lord promised that Peter's faith should*

not fail, and admonished him to confirm his brethren; which it has always been acknowledged by all that the Apostolic Pontiffs, my predecessors in my littleness, have confidently done.

4. Nicholas I, in *Epist. ad Michaellem Imperatorem*, said: *The privileges of this See are perpetual, divinely rooted and planted: they can be assailed, they cannot be transferred; they can be dragged at, they cannot be torn up. Those which were before your Empire remain, thanks be to God, unimpaired hitherto, and shall remain after you; and so long as the Christian name shall be preached, they shall not cease to subsist. And below, showing whence he preached such things so freely, he says: For among the rest, he through whom these privileges were chiefly conferred upon us heard from the Lord, Thou, being once converted, confirm thy brethren.*
5. Pope Leo IX likewise, in *epist. ad Petrum Antiochenum*, wrote as follows: *Assuredly he alone is the one for whom the Lord and Savior declared that he had prayed, that his Faith should not fail, saying: I have prayed for thee, &c. Which venerable and efficacious prayer obtained that hitherto the faith of Peter has not failed, nor is it believed that it will fail in his throne.*
6. Pope Innocent III, in *epist. ad Episcopum Arelatensem*, cited in *cap Majores, de Baptismo, & ejus effectu*, said: *He understands that the greater causes of the Church, especially those touching the articles of Faith, are to be referred to the See of Peter, who knows that the Lord prayed for him, that his faith fail not. To which Pontiffs (says Cardinal Bellarmine) it seems that credence must altogether be given, both because they were Saints, and because without doubt the authority of their own See must be especially known to them.*

29 Theophylact, in *cap. 21. Lucæ*, speaking with Peter in the name of Christ, thus declared: *Because I have thee as Prince of the Disciples, confirm the rest. For this befits thee, who after me art the rock and foundation of the Church.*

1. St. Peter Chrysologus, in *epist. ad Euthychem*, which is found in *tom. 1. of the Councils*, before the Chalcedonian, thus says to him: *We exhort thee, honorable brother, that thou attend obediently to those things which have been written by the most blessed Pope of the city of Rome, because blessed Peter, who lives and presides in his own See, affords the truth of faith to those who seek it.*
2. And lastly St. Bernard, *epist. 190. ad Innocent. Papam*, speaks thus: *It is fitting that all dangers and scandals of the Kingdom of God be referred to your Apostolate, especially those which arise concerning the Faith. For I judge it worthy that the losses of the Faith be repaired chiefly there where the Faith cannot suffer defect. For to what other See was it ever said, I have prayed for thee, that thy faith fail not?*

3. *Secondly* Bellarmine proves that the Supreme Pontiff, when he teaches the whole Church in those things which pertain to Faith, can in no case err, from the promise made by Christ the Lord to St. Peter, *Matt. 16.*, there: *Upon this rock I will build my Church, and the gates of hell shall not prevail against it.* Because to the letter Peter is called the rock and foundation of the Church, as Supreme Ruler of the Church, as the same Cardinal demonstrates, *tom. 1. lib. 1. cap. 10.*; and therefore, he says, any successor of his whatsoever is likewise the rock and foundation of the Church.
4. *Thirdly* he proves the same from that of *the last chapter of John: Feed my sheep:* under which words he demonstrates, *dicto lib. 1. cap. 14. 15. & 16.*, that the Pontiff was instituted Pastor and Doctor of the whole Church. From which he infers: *Therefore the whole Church is bound to hear and follow him. Therefore if he err, the whole Church will err.*
5. *Fourthly* and lastly he proves that the Pontiff cannot err in faith when he teaches the whole Church, from a twofold experiment. *The first* is that all the Patriarchal Sees fell away from the Faith, so that heretics, and men professing heresy, have sat in them, the Roman See excepted, as is had in the form of reconciliation of the Churches which had fallen away from the Roman, written out by Pope Boniface II, *in epist. ad eulalium Episcopum Cartaginensem*; by Pope Hormisdas, *in epist. ad Episcopos Hispaniæ missa*; and given by Pope Adrian to the Eighth General Synod, and recounted by Cano, *de Locis Theologicis, lib. 6. cap. 4. in fine*, in which is had: *The sentence of Our Lord Jesus Christ cannot be passed over, who says: Thou art Peter, and upon this rock I will build my Church: and these things which have been said are proved by the effects of events; because in the Apostolic See the Catholic religion has always been preserved without stain.* The same Cano, *cap. 6.*, recounts that the Sixth General Synod, *in actione 4.*, contains the profession of Faith which Pope Agatho sent to that same Council, under this tenor: *By the aid of the blessed Apostle assisting, this his Apostolic Church has never been turned aside from the way of truth into any part whatever of error. And below: For this Apostolic Church of Christ, by the grace of God, shall be proved never to have erred from the path of Apostolic tradition; nor has it succumbed, depraved by heretical novelties: but as from the beginning of the Christian Faith it received from its authors, the Princes of Christ's Apostles, so it remains unimpaired unto the end, according to the divine promise of the Lord Savior himself: Peter, Peter, behold Satan hath desired to have you, &c. But I have prayed for thee, that thy faith fail not: And do thou confirm thy brethren. Which it has always been known that my Apostolic predecessors have confidently done.* Thus far St. Agatho, Pope, a Sicilian, taken from among the Benedictines, as Arnold Wion attests, *tom. 1. p. 131.*, Azor, *part. 1. lib. 12. cap. 21. quæst. 2.*, Trithemius, *de Viris Illustribus lib. 1. c. 5.*, San Vitores, *en el Sol del Occidente, to. 1. prelude. 8.*, Yepes, *en la Coronica General, tom. 2. fol. 327. 329. 331. 332. y 289.*

6. I am not, however, ignorant that, according to the opinion of some, several Supreme Pontiffs have fallen away from the Catholic Faith; which opinion Francisco Amico relates, together with those who are branded with this mark, *in Cursu Theologico*, tom. 4. disput. 7. sect. 1. To which he replies, num. 37., first, in general and universally, that none of the said Pontiffs erred in matters of Faith as Pontiff, that is, as teaching the Church *ex Cathedra*: the sign of which (says he) is that not one is adduced who proposed to the Church, to be followed, the error into which he had fallen as a private person, and who bound and obliged her to believe it with divine faith. Which reply is certainly confirmed by the ten authorities just now rendered, of which the first is that of Saint Lucius I, Pope and Martyr, and the last that of Saint Bernard. And this indeed, and nothing more, do we intend to prove, together with Cardinal Bellarmine: that Christ the Lord granted to St. Peter and to his successors the second privilege, concerning which above, num. 18.
7. Next he replies severally for each of the said Pontiffs whom I recounted, n. 16., as follows. For Zephyrinus, that the matter is doubtful whether even as a private person he approved heresy. As to Liberius, he says that the matter seems certain, that from weariness of exile he subscribed to the heresy of the Arians, as a private person, to avoid the penalty of exile, but not as Pontiff teaching *ex Cathedra*, and that he consented to the heresy extrinsically, as Marcellinus to idolatry. As to Felix he says that, although he communicated with the Arians before he was true Pontiff, namely while Liberius was living in exile, yet when he had been made true Pontiff, he not only abstained from the communion of the Arians, but condemned the Emperor Constantine as a heretic. As to Leo I, Amicus says that he is falsely interpreted by the adversaries. But as to Gelasius, that the book against Eutyches is not his, but Gennadius's, or that of Gelasius Bishop of Caesarea. Likewise as to Anastasius he says that, granted that he communicated with Photinus the heretic, he could have communicated with him as a private person, without approbation of the heresy; and granted that he approved it, did he therefore err as Pontiff teaching *ex Cathedra*? As to Vigilius he says: that he wrote a letter confirming the heresy of the Monothelites, yet without obliging the faithful to embrace it, and at a time when he was not true Pontiff, but Antipope in the schism against Silverius. As to Honorius I he says that, whatever be the case whether he fell into the said heresy of the Monothelites, it is certain that he did not consent to it as Pontiff teaching it *ex Cathedra* and obliging the Church to it, but as a private man. And as to Gregory III, that it is false that he granted that a man might take another wife on account of any infirmity whatsoever impeding the use of matrimony, but on account of an infirmity rendering him naturally impotent for intercourse, as on account of excessive narrowness,
8. But in the other Patriarchal Sees it is certain that heretics have sat, and men publicly professing heresy, and not only as private persons, but as Pontiffs of those Sees. For in the Constantinopolitan, as Cardinal Bellarmine attests, tom. 1. libro 4. de

Potestate spirituali Summi Pontificis, cap. 2., there sat Macedonius, Nestorius, and Sergius, heresiarchs. In the Alexandrian, George and Lucius the Arians, Dioscorus the Eutychian, Cyrus the Monothelite, and others. In the Jerusalemite, John the Origenist, and before him Eutychius, Irenaeus, and Hilary, Arians, sat. And in the Antiochene, Paul of Samosata the heresiarch, Peter Gnapheus the Eutychian, Macarius the Monothelite, and others. Yet nothing of the kind can be shown concerning the Roman See, according to what has been said above, and according to the saying of Rufinus, in *Expositione Symboli*, namely: *In the Church of the City of Rome no heresy has ever taken its beginning, and there the ancient custom is preserved.* From which it appears that Christ prayed for it, that its Faith should not fail.

9. The second experiment from which Bellarmine proves, *dicto libro 4. cap. 3.*, that the Supreme Pontiff, when he teaches the whole Church in those things which pertain to Faith, cannot err, even if he employ no General Council for it, is that the Pope has condemned very many heresies without a General Council. For Pope Siricius first condemned Jovinian at Rome, and secondly he was condemned by the Synod of Milan celebrated upon his authority, as is evident from Siricius's letter to the Church of Milan, which is had *la 2 tomo 1. Epistola Romanorum Pontificum*, and from Henri de Sponde, in *Compend. Baronii, Anno Christi 390. & 6. Siricii, num. 7.*
10. Pelagius also the said Siricius first condemned, in the said Jovinian, from whom Pelagius himself drew and took his heresy, as St. Jerome attests of both, *lib. 2. contra Pelagium, & in Jeremiam, Præfat. libro. 4.* But afterwards Pelagius was condemned in the Council of Carthage. For thus says Spondanus, in the year of Christ 412, *num. 5.* But as to what you hear concerning the first judgment of Caelestius at Carthage, I would by no means have you think that the Pelagian heresy itself was first condemned in the Synod of Carthage. For St. Prosper, *Carm. de Ingrat.*, beholding these things with his own eyes, constantly affirms that it first befell that it was condemned at Rome: *after the manner, namely, of our forefathers, that a newly emerging heresy should first of all be examined and condemned by the first of all Sees.*
11. The heresy of Caelestius also was condemned by Pope Siricius before it was condemned by the Council of Carthage: because, as Spondanus says in the place just cited, *numero 4.*, Caelestius was the foremost disciple of Pelagius. Whence, if the Pelagian heresy was condemned in Jovinian by Pope Siricius, who preceded the said Council of Carthage, the heresy of Caelestius, Pelagius's foremost disciple, was also condemned by the same Siricius.
12. Manes, otherwise the heresiarch Manichaeus, was harried at Rome by Pope Anastasius, as Spondanus is author, in the year 402, *numero 13.* And Boniface I, appealed to by a bill of accusation from the Clerics of the Church of Valence in Gaul

against Maximus, the Manichaeen Bishop, delegated the cause to be examined to the Bishops of seven provinces. The same Spondanus, in the year 419, *numero 15*. Leo the Great also began to persecute the Manichaeans lurking at Rome, and burned all their books. So Spondanus, in the year 443, *numero 1.*, in which place he adds, from Prosper *in Chronico*, that the industry and diligence of Leo in searching out the Manichaeans at Rome was divinely inspired in him, and profited very greatly not only the City but also the whole world; since by the confessions of those seized in the City it was laid open who were their Doctors, who their Bishops, and who their presbyters, and in what provinces or cities they dwelt; and that very many Prelates even of the Eastern parts imitated the industry of the Ruler. Thus Spondanus.

And that what has been said may be rendered more evident, it is well to recount several condemnations of heresies and of heretics made by the Pontiffs without a General Council; for after the last, which was that of Trent, confirmed by Pius IV on the 7th of the Kalends of February 1563, the same Pope, on the day before the Kalends of April of the same year, condemned Odet de Châtillon, Cardinal and Bishop of Beauvais, as fallen into the heresy of the Huguenots. Concerning which condemnation he issued a Bull, *la 66. apud Angel. Cherubin. tomo 2. Bullarii*. Pius V declared Elizabeth Queen of England a heretic and a fosterer of heretics, out of the plenitude of the Apostolic See, 5. *Kalendarum Maji, 1570. in Bulla 101. dicti Bullarii*. Innocent X, in his Constitution 31, in *tomum 4.* of the said Bullarium, on the day before the Kalends of June 1653, condemned as heretical five propositions of Cornelius Jansen, concerning whose condemnation Diana Coordinatus may also be seen, *tom. 9. tract. 5. resol.* The same Innocent, in the Decree of the Sacred Supreme Congregation and General Inquisition, published 15 January 1654, which I have by me printed in the Printing-house of the Reverend Apostolic Chamber, condemned this proposition as heretical: *The ecclesiastical jurisdiction which belongs to His Holiness as Pontiff, outside his temporal territory, regards causes and persons, and is restricted to determinate causes and persons, and in these alone can it be exercised; but the territory is not his, but the King's; and so, just as one who exercises jurisdiction in another's territory is obliged to ask the good pleasure of the lord of the jurisdiction of that territory, so when the Pontiff, not having jurisdiction of territory, wishes to exercise it in the King's, over the causes or persons in which it belongs to him, he ought to permit his rescripts to be examined by the temporal Prince, so that the latter may recognize whether the causes and persons contained in them are of his jurisdiction.*

1. And the Pope has condemned very many other heresies without a General Council, says Cardinal Bellarmine in the place already alleged, which by that very fact the whole Church of Christ held for true heresies and abhorred, because they had been condemned by the Roman Pontiff. It is therefore a sign that the whole Church holds

that the Roman Pontiff cannot err in matters of this kind. Lastly the said Cardinal refers his Readers to see Prosper, *in ultimo libro contra Collatorem*, and Peter the Deacon, *lib. de Incarnatione, & gratia Christi ad Fulgentium*.

2. Father Francisco Amico, in the *Cursus Theologicus*, *tom. 4. disput. 7. sect. 1.*, likewise establishes at large that the Pontiff, even outside a General Council, defining something concerning Faith *ex Cathedra*, and, as universal Pastor, teaching the whole Church, cannot err, with the authority not only of Bellarmine, *dicto libro 4. de Romano Pontifice, tap. 2.*, but also of St. Thomas, *2. 2. quæstio 1. art. 10.*, Bañez, in *Commentario brevi, dub. [?] conclus. 3.*, Suárez, *disput. 5. sect. 8.*, Valentia, *disput. 1. quæstio 1. punct. 7. §. 39. & 40.*, Malderus, *dub. 5.*, Torres, *disputatione 16. dub. 1.*, Cano, *libro 6. de locis Theologicis, cap. 7. & 8.*, Sylvius, *libro 4. de Controvers. quæst. 2. art. 8.*, and Cajetan, *Opusc. de Autoritate Papæ, & Concilii, cap. 9. §. Ad rationem*, saying: *It has already been said that the Pope and the Church can do no more than the Pope alone*. Then, from the common and constant opinion. Then finally, from various reasons. Of which I have thought it worth the labor to relate one or two of the more select.

3. The first is of this sort. The Supreme Pontiff has that authority in defining matters of Faith which St. Peter himself, the first Pontiff instituted by God, had. But St. Peter did not have infallible authority in defining matters of Faith dependently upon a General Council. Therefore neither has the Supreme Pontiff, St. Peter's successor, that authority dependently upon a General Council. The major is evident, because Peter had infallible authority of defining matters of Faith not as a private person, but as public Pastor and Ruler of the universal Church: inasmuch as he received it from Christ for the good and utility of the Church, and therefore to be continued in his successors. The minor is evident from all those promises which Christ made to Peter as the future Ruler of the Church, all of which were made to the single individual person of Peter alone, with no mention made of the Church: *Matt. 16. To thee will I give the keys of the kingdom of heaven: whatsoever thou shalt bind upon earth, it shall be bound also in heaven: and whatsoever thou shalt loose upon earth, it shall be loosed also in heaven*. And likewise *Luke 22. I have prayed for thee, that thy faith fail not: and do thou at length confirm thy brethren*. And also, *John 21. Feed my sheep*. Since therefore Christ does not limit in Peter the power of confirming the brethren in Faith, of binding and loosing, and of feeding the sheep, by dependence upon the Church, but confers it absolute and free from all dependence, the adversaries falsely limit it by dependence upon a General Council. For which reason certainly there make the authorities which I recounted above, *numero 4*, taken from Cardinal Cajetan, *tom. 1. Opusculorum. tract. 2. cap. 14*.

4. Nor is it valid to infer from this that the Supreme Pontiff ought not to employ any consultants in defining matters of Faith. It is not valid, I say, because although in the said passages the power of defining is conferred absolutely and independently upon Peter and his successors, it is established from another source that the Pontiff ought to employ Doctors who may examine and discuss the matters before he defines things pertaining to Faith — namely, from the manner in which Christ promised assistance to the Pontiff, that is, in a manner conformable to human ways.
5. But if you ask, what if the Pontiff should wish to define matters of Faith or of morals with none consulted, will he have the infallible assistance of God, that he err not in the definition? Amicus replies, *loco citato*, n. 3., after Cano, *lib. 5. de Locis Theologicis*, c. 5. *quæst. 3.*, that the Holy Spirit will never permit the Pontiff to approach the deciding of controversies of Faith with the Doctors unconsulted: because he who promised the end promised also the means necessary to the end; but Christ promised to Peter and to his successors that the gates of hell should never prevail against his judgment, and for pronouncing a true judgment of Faith the previous consultation of Doctors and discussion of the truth is necessary. Otherwise the Church could always be in doubt whether, in the controversies hitherto defined by the Apostolic See, the condition of such consultation was employed.
6. The second reason for our opinion is this: because as often as in some expressly revealed proposition another is implicitly contained, this implicitly contained one pertains to the same faith, not indeed as deduced, but as explicated. But in this expressly revealed proposition: *Peter, even outside a General Council, defining matters of Faith, has infallible authority from Christ*, this is virtually contained, not as deduced, but as explicated: *Any legitimate successor of Peter whatsoever, even outside a General Council, defining matters of Faith, has infallible authority*. Therefore this also, not as deduced but as explicated, will pertain to the same Faith to which the expressly revealed major pertains. The major is expressly had in the Sacred Oracles rendered a little before in the first reason, in which all the promises made by Christ to Peter, as Pastor of the universal Church, were made to his singular and individual person. The minor is evidently deduced from the end for which Christ conferred such authority upon Peter, namely that he might perpetuate it in the Church, according to that: *Thou art Peter, and upon this rock I will build my Church, and the gates of hell shall not prevail against it*. Which reason Diana relates and follows, *dicto tractatu 5. resolutione 4. numero 3.*
7. Which evident deduction certainly appears from this, that if any legitimate successor of Peter whatsoever did not have infallible authority even outside a General Council, then, Peter being dead, the Church would have remained exposed to the manifest danger that the gates of hell should prevail against her contrary to the aforesaid promise of Christ the Lord, and this most of all in that time in which General

Councils were not celebrated, which beyond doubt came to pass through the courses of very many centuries. For after St. Peter celebrated the Council of the Apostles, in the seventh year of his own [pontificate], and the fifty-first of Christ the Lord, together with the Apostles — which is had in Bartholomew Carranza in the Summa of all the Councils from St. Peter down to Pius the Fourth, consisting of 85 Canons, received and approved by the Sixth universal Synod and third of Constantinople, Canon 2, assembled in the year of the Lord 680, under our St. Agatho, Pope, from a Sicilian Monk assumed to the Chair of Peter. The *First* General Council celebrated by the Church was in the year of Christ 325, under Pope Sylvester, in his 12th year, in Nicæa, a city of Bithynia, as Spondanus, in *Compendio*, n. 1.; or, as Coriolanus, in *Compendio Conciliorum*, will have it, begun in the year 327, and terminated in 330, the 15th of Sylvester. The *Second* was celebrated at Constantinople under St. Damasus, Pope, in his 15th year, and of Christ the Lord 381, as Spondanus testifies, n. 2., and Facciotus, in *Indice Summorum Pontificum*, and Coriolanus. Granado 2. 2. *de Fide*, tr. 8. *disp.* 1. *sect.* 1. n. 3. The *Third* was assembled at Ephesus, in the eighth year of Pope Celestine, and of Christ 431, as the same Authors testify. The *Fourth* was that of Chalcedon, celebrated under Leo the Great, Pope, in his 12th year, and of Christ 451; concerning which the same Spondanus, and Facciotus, and Coriolanus. The *Fifth* Council, and *second* of Constantinople, was assembled in the year of the Lord 553, and the 14th of our Vigilius, Pope the First, although Coriolanus less rightly says it was assembled in the time of Agatho, in the said year. The *Sixth* General Council, and *third* of Constantinople, as the aforesaid Authors affirm, was celebrated under the aforesaid St. Agatho, Pontiff, a Benedictine Monk, in the year 680. The *Seventh* General Council, which was the *second* of Nicæa, was celebrated under Pope Adrian I, in the year 789, according to Facciotus, or, according to Spondanus and Coriolanus, in the year 787. But the *Eighth*, which was the *fourth* of Constantinople, was, according to both Authors, in the year of the Lord 869, and the 2nd of Adrian II. That the *Ninth* General Council, moreover, and *fifth* of Constantinople, was assembled under Pope John the Eighth, in the year 877, Facciotus testifies, which Coriolanus omits to recount. Our Pope Calixtus II celebrated the First Lateran General Council at Rome, in the year of the Lord 1122, or, as Facciotus prefers, in the year 1123. Innocent the Second, also ours, with a thousand Bishops celebrated another General Council, the Second Lateran, in the year 1139 according to Facciotus, and according to Coriolanus in the year 1135; Spondanus agrees with Facciotus on the year 1139. Alexander III celebrated another Lateran General Council in the year 1180, as the said Facciotus testifies, or, as Coriolanus says, in the preceding year, 1179: which was the third Lateran, and the *twelfth* General. The *thirteenth* General, and *fourth* Lateran, was celebrated under Innocent the Third, in the year 1215, as Coriolanus, Facciotus, and Spondanus testify, in the Continuation of the Annals of Baronius, *tom.* 1. *eodem an.* 1215. The *fourteenth* was the First of Lyons, celebrated under Innocent the Fourth, in the year

1245, as Spondanus, Coriolanus, and Facciotus. The *fifteenth*, and Second of Lyons, was assembled under Gregory X, in the year 1274, on the testimony of Coriolanus and Spondanus, or, as Facciotus, in the following year 1275. The *sixteenth* was that of Vienne, under Martin V, in the year 1311: Coriolanus and Spondanus stand for it, but Facciotus for the following year 1312. The *seventeenth* was that of Florence, celebrated under Eugene the Fourth in the years 1438 and 1439: Coriolanus, Spondanus, and Facciotus. The *eighteenth*, and *Fifth* Lateran, was celebrated under Julius II and Leo X, in the year 1517: Coriolanus and Spondanus terminate it there, and in the 5th of Leo; Facciotus assigns for it the year 1511, which was the 8th of Julius. The *last* General Council was that of Trent, begun under Paul III, and continued under Julius III, and terminated under Pius IV, in the year 1563. It was assembled in the year 1545, as Coriolanus and Spondanus. Facciotus assigns for this Council the year 1542, in which indeed the Bull of the aforesaid Paul went forth for the indiction of this Council.

8. Coriolanus recounts seven other General Councils at the beginning of his summa, which, because they are reprobated, do not deserve to be joined to the preceding. The *First* was that of Antioch, in the year 345, in which St. Athanasius was condemned. The *Second*, that of Milan, in the year 354, in which, although obliquely, the Catholic faith was condemned. The *Third*, that of Rimini, in the year 363. The *Fourth*, the Second of Ephesus, in the year 459, in which the Eutychian heresy was confirmed. The *Fifth*, that of Constantinople against the sacred Images, in the year 728. The *Sixth*, that of Constantinople, in the year 754, in which it was defined that the images of Christ and of the Saints were to be abolished. This Council was reprobated in the Seventh, and second of Nicæa, action 6, in the year 787. The *Seventh* is that of Pisa, in the year 1511, which was reprobated in the Fifth Lateran Council under Julius II, sess. 2. & 3.
9. Coriolanus reports six other Councils, partly approved and partly reprobated. The *First* is that of Sardica, in the year of the Lord 347, in which 76 Eastern Bishops wrote out the Arian faith, and 300 Western confirmed the Catholic faith, which Hilary set forth, *in libro de Synodis*. The *Second* is that of Sirmium, in the year 356, in which two formulas of faith dissenting from one another were published. The *Third* is the Quinisext, in the year 692, in which are contained the Trullan Canons, reprobated by Pope Sergius then reigning, because they did this without the authority of the Pontiff; the 82nd Canon, however, on the Painting of Images, was afterwards received by the 7th Synod, and by Pope Adrian I. The *Fourth* is that of Frankfurt, in the year 794, approved by Adrian I inasmuch as it defines that Christ is not the adoptive son of God, and reprobated by the same as to the part in which, by an error, the Seventh Synod is condemned. The *Fifth* is the Council of Constance, which, inasmuch as it defined the Council to be above the Pope, is reprobated in that of Florence, and in the last Lateran. As to those things which Martin V approved, it is

received by all Catholics. The *Sixth* is that of Basel, of which nothing is ratified and approved, save certain dispositions concerning benefices made by the Council, and approved by Pope Nicholas for the sake of peace and unity; but the Council itself is reprobated by [?] the last Lateran Council, sess. 2.

10. The Council of Pisa, celebrated in the year 1409, is neither manifestly approved nor reprobated: for on the one side, Gregory XII and Benedict XIII being deposed, it elected Alexander V, who is numbered among the true Pontiffs; but on the other, St. Antoninus, *part. 3. tit. 22. c. 5. §. 2. & 3.*, asserts it to be a Conciliabulum: which the event proved; for it was assembled to take away the Schism, which nevertheless it did not take away, but increased.
11. *Twelfthly*, I suppose that the Supreme Pontiff can by no means err, as such, in handing on or in prohibiting a doctrine of morals to all the faithful, whether he proceed with a General Council, or not. So Diana Coordin. *tom. 9. tr. 5. res. 12. à n. 4.*; Bellarmine, *tom. 1. l. 4. de Potest. spirituali Summi Pontific. c. 5. de Decretis morum.*; Turrianus, in *Selectis Disputat. Censuræ Theologicæ, centur. 1. dub. 63.* Diana alleges Cano, *l. 5. de Locis Theologic. c. 5. q. ult. concl. 1.*; Bañes, *2. 2. q. 1. art. 1. in Breviorib. comment. dub. 6.*; Valentia, *de Objecto fidei, disp. 1. q. 1. pun. 7. §. 40.*; Malderus, *dub. 6.*; Suarez, *disp. 5. sect. 8.*; Sylvius, *l. 4. de Controv. q. 2. art. 13.*; Turrianus, *disp. 16. dub. 2.*; and all the more recent writers, of whose number is James Granado, *controv. 1. de Fide, tract. 7. disp. 2. sect. 2. n. 6. & 11.*: for there he lays down this conclusion: While the Supreme Pontiff, as head of the Church, defines something wholly pertaining to *faith* or to *morals*, he cannot err. And here he brings forth what follows: As concerns the doctrine of morals, it is no less certain that that which is a sin cannot be defined by the Pontiff to be good, than it is certain that he cannot err in the doctrine of faith, since it can also pertain to faith to believe whether this be a sin or not: whence he cannot define that usury is not a sin, etc. Thus Father Granado.
12. But Diana, *dicto n. 4.*, affirms this assertion: It must be said that it is of faith that the Pontiff cannot establish anything to be observed by the universal Church which is contrary to the divine or to the natural law.
13. He proves it I. because it is of faith that the Pontiff cannot err in feeding the sheep; but the sheep are fed not only by the doctrine of faith, but by the institutes of morals. Therefore it is of faith that he cannot err in these institutes, just as he cannot err in the doctrine of faith.
14. II. It is of faith that the spirit of truth cannot fail in the Church; but if the Pontiff should command something contrary to the divine or natural law to be observed, the spirit of truth would already fail in the Church. Therefore that he cannot command this is of faith.

15. III. It is of faith that the Pontiff cannot teach error in matters of faith; but from the fact that he should command something to be observed contrary to the divine or natural law, he would teach error, because he would teach men to believe that this is to be observed, which is an error in faith. Therefore it is of faith that he cannot command that.
16. Fourthly he proves it from an inconvenience: because if the Pontiff could err in enacting laws about things necessary to salvation, it would follow that the whole Church could err in the business of salvation; but in the business of salvation the whole Church cannot err. Therefore neither can the Pontiff err in enacting laws about things necessary to salvation. The minor is plain from the promise of Christ: *and the gates of hell shall not prevail against her*: because, if she could err, whether by falsity of doctrine, or by malice and iniquity of morals, the gates of Hell could truly prevail against her.
17. The consequence is proved: because by the precept of Christ the whole Church is bound to obey the Supreme Pontiff commanding or prohibiting things necessary to salvation. Therefore, if the Supreme Pontiff could err in precepts and prohibitions of this kind, the whole Church could err in things necessary to salvation.
18. And it is confirmed. If the Supreme Pontiff could err in commanding things necessary to salvation, he could also err in matters of faith; because the same Sacred Scripture teaches that vices are base and to be shunned, and, on the contrary, that virtues are honest and to be embraced. But if the Supreme Pontiff should either command some vice, or prohibit a virtue, he would teach against that same sacred Scripture that vice is honest and to be embraced, and, on the contrary, that virtue is base and to be shunned; since he cannot command a vice save under the aspect of the good and the honest, nor prohibit a virtue save under the aspect of the evil and the base. Therefore, if the Pope could err in commanding things necessary to salvation, he could also err in things pertaining to the faith.
19. Bellarmine proves our supposition, *loco citato*, saying: Not only in the Decrees of faith can the Supreme Pontiff not err, but neither in the precepts of morals which are prescribed to the whole Church, and which are concerned with things necessary to salvation, or with those things which are *per se* good or evil.
20. We say *first*, that the Pontiff cannot err in those precepts which are prescribed to the whole Church, because, as we said above, in particular precepts and judgments it is not absurd that the Pontiff should err. We added *secondly*, which are concerned with things necessary to salvation, or *per se* good or evil, because it is not erroneous to say that the Pontiff can err in other laws, namely by enacting a superfluous law, or a less discreet one, etc.

21. And that we may declare the whole matter by examples: It cannot come about that the Pontiff should err by commanding some vice, as usury, or by prohibiting a virtue, as restitution; because these are *per se* good or evil. Nor can it come about that he should err by commanding something against salvation, as circumcision, or the Sabbath; or by prohibiting something necessary to salvation, as Baptism, or the Eucharist, although these are not *per se* good or evil. But that he should enjoin something which is neither good nor evil of itself, nor against salvation, but is nevertheless useless, or should command it under too grave a penalty, it is not absurd to say that this can come about; although it is not for subjects to doubt about this matter, but simply to obey.
22. The proposition is now proved, and *first*, that the Pope cannot err in the precepts of morals necessary to salvation; because then the whole Church would be gravely injured, and would err in things necessary: which is against the promise of the Lord, *Joann. 16. When that Spirit of truth shall come, he will teach you all truth.* Which is understood (at the least) of the truth necessary to salvation.
23. *Secondly*, because God would then be wanting to the Church in things necessary, since he commands her to follow the Pontiff, and permits the Pontiff to err in things necessary. But surely, if God is wanting to no thing in what is necessary, how much less to his own Church?
24. But that the Pontiff cannot err in morals *per se* good or evil is proved. For then the Church could not truly be called holy, as she is called in the Symbol of the Apostles. For she is called holy chiefly on account of her holy profession, as we have shown elsewhere, because, namely, she professes a holy law and profession, which teaches nothing false, commands nothing evil.
25. *Secondly*, because then she would necessarily err also concerning the faith. For the Catholic faith teaches that every virtue is good, every vice evil: but if the Pope should err by commanding vices, or by prohibiting virtues, the Church would be bound to believe that vices are good and virtues evil, unless she were willing to sin against conscience. Thus far Cardinal Bellarmine.
26. Father Francis Suarez, *tract. de Fide, disp. 5. sect. 8. n. 7.*, after he had affirmed, *n. 4.*, that the Pontiff defining *ex Cathedra* is a rule of faith which cannot err, when he authentically proposes something to the universal Church as to be believed with divine faith, speaks thus: From this general assertion it follows *first*, that the Pontiff cannot err in the precepts, or moral matters, which he hands on or approves for the universal Church. This is to be understood as to the substance, or as to the honesty of morals: for as to the circumstances, whether of multiplying precepts, or of rigor, or of excessive penalties, it is not inconvenient that some human defect be sometimes committed, because this is not against the sanctity of the Church; but to approve base

things as honest, or conversely to condemn honest things as iniquitous, is repugnant to the truth and sanctity of the Church: and therefore in these also the Pontiff cannot err. Which Antoninus said to be of faith, 3. *part. tit. 12. c. 8. §. 2.*; but Cano, *l. 5. de Locis, c. 5.*, said that it is little removed from it. Other more recent writers, however, press this matter somewhat less: Molina, *de Justitia, disp. 325.*; Bellarmine, *l. 4. de Romano Pontifice, c. 5.* It is declared by an example. For the Church approved the communion of the laity under one species as sufficient for salvation; and therefore this is held as certain of faith, according to the Council of Trent, *sess. 22. c. 1.*: but in this and like matter, in order that the Church may hold it, the approbation of the Pontiff suffices, nay rather the Church is bound to follow it: therefore, that the Church may not err, it is necessary that the Pontiff cannot err in such matter. And so thinks also Innocent the Third, *in capite, Per venerabilem, Qui filii sint legitimi.* Finally, all the things adduced in the assertion confirm this corollary; especially because, as I was saying above, *the Decrees of morals include a moral doctrine no less necessary to salvation than are the other truths of faith.*

27. Thus far Suarez, who, *n. 2.*, infers *secondly*, with St. Thomas, *quod lib. 9. art. ult.*, St. Antoninus, and Cano, *locis citatis*, Bellarmine, *l. 1. c. 5. de Sanctorum beatitudine*, Azor, *tom. 2. l. 5. c. 6. q. 5.*, Valentia, *to. 3. disp. 1. q. 1. pun. 7. vers. Itaq. quod ad*, Sylvester, *verbo Canonizatio, q. 3.*, who reports John of Naples as absolutely condemning the contrary as heresy, Turrecremata, *l. 2. Summæ, cap. 110.* (to whom I add James Granado, *tr. de Fide, disp. 2. tr. 1. & tr. 7. disp. 2. sect. 3. n. 2. contr. 1. pag. mihi 104.*, Diana Coordinat. *tom. 9. tr. 5. resolut. 15.*, and Roderick Arriaga, *tom. 5. tract. de fide, disp. 9. de Regulis Fidei, sect. 4.*, Barbosa, *in c. Audivimus, n. 4. d. 1. de Reliquiis & venerat. Sanct.*, with several others whom he recounts), that the Supreme Pontiff cannot err in the Canonization of the Saints. And it is taken (says Suarez) from Gregory, *in c. Sicut, dist. 5.*, and Bernard, *ep. 174.*, to the Lyonese.
28. But the reason is (Suarez pursues): because this is a certain part of moral matter, and very necessary, that the Church may not err in the cult and adoration of Religion; otherwise it could happen that she should worship a damned man, and pour forth prayers to him; which is also against the purity and sanctity of the Church. Likewise, it is not lawful for the faithful to doubt of the glory of a Canonized Saint: for the Pontiffs command this under a precise obligation in the canonization itself: therefore it behooves that error cannot underlie that precept; otherwise God would be wanting in a matter most necessary to the Church, which is against his providence and his promises: and therefore, although this inference is not of faith, I judge it to be sufficiently certain, and the contrary to be impious and rash. Thus Suarez *dicto n. 8.*, who, *n. 9.*, breaks forth into what follows.

29. Thirdly I infer that the Pontiff cannot err in the approbation of a Religion. So we too hand down, and more at large, *tom. 3. de Religione, lib. 2. cap. 17.*, and the more recent writers commonly embrace it: Azor. *tom. 2. lib. 5. cap. 7. quæst. 2.*, Valentia *supra*, and those whom we cite *dicto loco*; (I add Diana Coordin. *to. 9. tr. 5. resol. 23. n. 6.*, with John of St. Thomas, *2. 2. disp. 9. art. 3. fol. 777. col. 1.*, Turrianus, in *Selectis disp. in censura Theologica, cent. 1. dub. 62. & 65.*, Granado, *controv. 1. de Fide, tract. 7. disp. 5.*, with Bañes, *oppositum hæreticum appellante*) — which is to be understood (Suarez pursues) as to its substance, whatever be the case as to circumstances, such as can occur either in the approbation of a Religion not necessary, or in too great a multitude of them, although even in these judgment is not to be passed rashly. (Which explanation, or modification of the conclusion, Diana also adds, *n. 8.*, adducing other examples, namely, if that new Religion be less suitable to the Church, or because its institute is too hard, or too lax, or because from it there follows some confusion in the Church, and a diminution of spiritual fervor in the other Religions. A similar modification Granado appended, *n. 2.*) But I call substance (I continue Suarez's doctrine anew) that the approved Religion is not only not noxious or useless, but also is simply a way to perfection: in which Cano gravely erred, *d. lib. 5. cap. 5.*, thinking the contrary: for St. Thomas reputed that rash, *Opus. 19.*, especially *cap. 4.* (John of St. Thomas also, in *2. 2. disp. 9. art. 3. fol. 777. col. 1.*, recounted and followed by Diana, *d. resol. 23. n. 6.*, gravely impugns the same Cano, as does Granado, *d. disp. 5. n. 1.*) And the said assertion is very consonant with the Council of Trent *sess. 25. de Regular. cap. 16.*, and with the Council of Constance, which condemned Wyclif and John Hus, because they judged ill of the Religions approved by the Apostolic See; whom Waldensis refutes *supra, tit. 9.*, especially *à cap. 83.*, Bellarmine, *lib. de Monachis*, and others writing against heretics. Finally, the common sense of the Church favors it, thinking thus of the approved Religions, and condemning the contrary as scandalous and impious. But the reason is: because this also is a great part of moral matter; for it behooves that the Church have security and certitude, not only in precepts, but also in counsels, and in the way of perfection. Likewise, because to approve a Religion is as it were to canonize such an institute as holy: therefore it belongs to the providence of the Holy Spirit not to permit the Church, which he specially governs, to err in this; therefore it is not to be believed that this can happen.
30. Thus far Suarez, *loco citato*, who, in *tom. 4. de Relig. l. 3. c. 4. corollario 2.*, after he had asserted, *c. 3. n. 3.*, that the admission of Scholastics into the Society of Jesus constitutes them in a true and proper religious state, his assertion being proved from the Bull of Gregory XIII, *Quanto fructuosus*, of the year 1582, and from the Constitution *Ascendente Domino*, of the year 1584, says as follows. *Secondly*, it is inferred from what has been said how certain is the truth declared by the Pontiff. For I judge it to be altogether infallible, *so that it cannot be denied without error in faith*. The reason is, because the sentence of the Pontiff, in those things which pertain to

doctrine, contains an infallible certitude, from the institution and promise of Christ: *I have prayed for thee, that thy faith fail not; and thou, being once converted, confirm thy brethren. Lucæ 32. & Mathæi 16. Thou art Peter, and upon this rock I will build my Church, and the gates of hell shall not prevail against her.* And the concession was made, *Joannes 21. Feed my sheep.* Which testimonies have been so understood by the Church, and so confirmed and declared by perpetual tradition, and by the definition of the Fathers, of the Councils, and of the Pontiffs themselves, that I suppose it from its proper matter (namely, that on Faith); and there may be seen the things which Gratian heaps up, *distinct. 12. sui Decreti, & 24. q. 1.*, through several chapters, and at large Bellarmine, *l. 4. de Summo Pontifice*, from the beginning through some chapters (not a few of which testimonies I myself have accumulated above, *à n. 17. ad n. 34.*), and Turrecremata, *in Summa, l. 2. c. 10.* And for this reason it was always observed in the Church that the graver questions and causes of faith should be referred to the Roman See, as to the Chair and mistress of faith, as is said *in cap. Majores, de Baptismo*, and is taken *ex cap. Damnamus, de Summa Trinitate, & Fide Catholica, & cap. Fidei, eod. tit. in 6. cap. Ad abolendam, de Hæreticis, & cap. Præceptis, & cap. Non decet, dist. 12. & cap. Nulli fas, dist. 19.*, and at length from the Council of Florence, *in Decreto Unionis*, and from the Council of Trent, *sess. 7. can. 3. de Baptismo*, and *ex sess. 25. circa finem*, the decree *de Delectu ciborum*; and the cited Authors report more, [as does] Simancas, *de Catholicis Institutionibus, cap. 45.* But greatly diminished would the providence of Christ the Lord concerning his Church have been, if in deciding such questions *ex Cathedra* he should permit his Vicar to fall; nor could he himself justly compel his subjects, under the bond of anathema, to stand by these declarations or definitions, if he could err in handing on doctrine. Since therefore it has been shown that the aforesaid Constitution contains the declaration of a certain truth very necessary to the morals of the Church, and to the quiet and peace of souls, plainly such a declaration contains an infallible certitude.

31. And this can be confirmed from the doctrine of the Theologians, and of all Catholics, who hold it for certain that the Supreme Pontiff cannot err in handing on to the Church the Doctrine of morals; on which matter the Authors cited a little before may be seen: for this doctrine pertains much to good morals, and from the opposite many absurdities and scandals could be inferred in the Church, which a little below, in the third corollary, we shall enumerate, that this truth may become better known. And conversely, if this declaration of the Pontiff could be false, from it many absurdities, and things against good morals, would follow: as that the religious state would be changed into a non-religious one, and that the vow of Religion would be fulfilled without the religious state, and the like. All the aforesaid the most learned Fr. Francis Suarez teaches exactly, whom Peter Hurtado de Mendoza follows, *tom. 2. tr. de Fide, disp. 9. sect. 6. n. 36.*

32. But if you ask whether the things said hold in Laws or Decrees of morals which are not about matters of the law of nature, or of divine law, but about indifferent things — such as would be the precepts concerning the fast in Advent, and concerning the communion of the Eucharist at the three seasons of the year? I answer, with Diana Coordinatus, *tom. 9. tr. 9. resol. 13. n. 7.*, that they hold also in indifferent matters, in the laws and Decrees of which the Supreme Pontiff, decreeing *ex Cathedra*, or as Pope, as such, cannot err: because the Church is bound to obey the Pope as her Pastor, and because he does not command a dishonest thing, nor prohibit a good and honest one. Whence, by the very fact that he establishes a law of this kind, whether about a matter which was previously under counsel, as in the examples adduced, or about another matter indifferent in any other way whatsoever, he does nothing else (I render Diana's words) than constitute in the matter of virtue the act which he commands.
33. Nor does it stand in the way, that one Pontiff can alter and change, out of these Decrees, the things which another had established. For neither erred, but [acted] according to the diversity of times: what the Pontiff now judges suitable, afterwards his successor, or he himself establishing, will be able prudently, on account of some circumstance, to judge unsuitable, and so to alter and change it. Which is well and conclusively proved from *capite: Priscis, 55. distantia, ex capit. Sententiam, 35. quæstione 9.*, taken from Nicholas I, where I read: *Therefore, the judgment of the Roman Prelate not being to be retracted — since neither does custom require it — what we have said being approved, we do not deny that the sentence of the same See can be changed for the better, when either something has been obtained from her by subreption, or when she herself, out of consideration of ages, or of times, or of grave necessities, has decreed to ordain certain things by dispensation. And in cap. Scit sancta Romana Ecclesia, that diverse constitutions or customs, according to place and time, in no wise hinder the salvation of believers, if Canonical authority does not withstand them. It is proved also from capit. Necessaria, 1. quæst. 7.*, taken ex *Epistol. 1. Gelasii I.*, and from many Councils: from that great Lateran, of 1215 Fathers, under Innocent III, saying in *capite 50. It ought not to be judged reprehensible, if according to the variety of times human statutes are sometimes varied, especially when urgent necessity, or evident utility, demands it: since God himself changed in the New some of the things which he had established in the Old Testament.* From the Council of Sens, in *Decreto de unitate Ecclesiæ, & damnatione hæreticorum*, where it is read: *The Church, which cannot err, although she has proposed diverse and sometimes [?] conflicting Decrees, yet there is nothing in so great a multitude of Decrees which is opposed to the Orthodox faith.* Finally, from the Council of Trent, *sessione 25. capite 18.*, saying: *Wherefore let all know that the most sacred Canons are to be exactly observed by all, and, so far as it can be done, without distinction. But if an urgent and just reason, and sometimes a greater utility, shall demand it, dispensation is to be made with some.* For the same argument, see

Diana Coordinatus, *tomo 9. tractatu 13. numero 8.*, and many in him, and Peter Crespet in *Summa Ecclesiastica Disciplina, verbo Canones Patrum, aliquando necessitate variantur, & immutantur, & verbo Traditiones Patrum, quandoque variantur.*

34. But if you ask again, Whether the Supreme Pontiff can err in a Constitution, or Decree, made in matters of faith or of morals for one Province or Diocese? Diana answers, *de resolutione 13. numero 6.*, that although some think he can err — because then he does not seem to bear the office of Pontiff, in that he does not bind the Universal Church by that Decree — he himself nevertheless believes, with Bañes 2. 2. *quæstione 1. articulo 10. dubio 6. conclusione 4.*, that it is of faith that neither then can the Pontiff err. Because the Pontiff, inasmuch as he is supreme Pastor, establishes a law or Decree obliging some Province or Diocese: because according to this account, not only the Government of the whole Church has been committed to him, but also that of any Province and Parish whatsoever. If, therefore, in respect of the whole Church he cannot err, because he is her supreme rule of truth, since in respect also of any Province and Parish whatsoever he is the same rule, it is soundly brought about that he cannot err in respect of a Province or Parish.
35. Secondly, if it be admitted that the Pontiff can err in a special statute, commanding things contrary to the divine or natural law to be observed in some Province or Parish, it seems to be admitted that he can err concerning the whole Church: because the Universal Church has a sufficient foundation for believing that what is so ordained and commanded is good, and to be observed by that Province or Parish. But such a judgment is erroneous. Therefore, from a special error of the Pontiff, the universal Church is forced to err, which cannot be said.
36. Lastly, I suppose, as certain of faith, that Alexander the Seventh, the framer of the Decrees of which the title of the question treats, was the true Supreme Pontiff, and the successor of the Blessed Apostle Peter in the Roman Apostolic See. This supposition I prove by the authority and doctrine of the most learned Theologians: Franc. Suarez, *tractatu de Fide, disputatione 5. sectione 8. num. 12. fol. mihi 105.*, and of others, whom he himself, as we shall see, recounts; and also of Roderick de Arriaga, in *Cursu Theologico, tomo 5. tract. de Fide, dispositione 7. sectione 8.*; Franc. Amico, in *simili cursu, tomo 4. dispositione 6. sectione 5.*; Peter de Lorca, in 2. 2. *quæst. 1. articulo 1. dispositione 2. in fine, pagina 12.*; Mart. Bonacina in *Summa, tomo 3. disputatione 1. quæstione 2. puncto 1. numero 9. cum duobus sequentibus.*; Castro Palao, *tomo 1. tractatu 4. de Fide, disp. 1. sectione 13. §. 5. à numero 325.*; Peter Hurtado de Mendoza, *tomo 2. tractatu de Fide, disputatione 37. per totam.*; James Granado, *controversia 1. de Fide, tractatu 7. disputatione 1.*

sectione 3. numero 15.; and Diana Coordinatus, *tomo 9. tractatu 5. resolutione 6.*: whose doctrines, and those of Suarez, I shall set forth, that the truth of our supposition may shine out.

37. Father Suarez, therefore, *loco citato*, wrote thus. In the last argument a question is raised, in former years much controverted, *Whether it be of faith that this Pontiff is the true Pontiff?* Which I cannot now dispute as it deserves; briefly, however. Many think that this is not of faith; but they will scarcely be able to sustain the certitude of faith in the matters defined by the Pontiff, unless they consequently say that not only a true Pontiff, but even one not so reputed by the Church, cannot err in defining: which Bellarmine holds, *supra*. I, however, nearly thirty years ago, that is, in the year of the Lord 1585, taught at Rome, *that it is of faith that this Pontiff is the true Pontiff, after he has been received by the sufficient consent of the whole Church, and so approved that all are bound to obey him, even in the definitions of faith*; because this obligation necessarily supposes that certain faith, and that particular truth is sufficiently contained in the universal dogma of faith, that the successor of Peter is the true Pontiff, and then it is sufficiently applied and proposed to the faithful. Which opinion our men afterwards either defended in public disputations, or some even committed to print. Of whom may be consulted Salmeron, *libro 1. in Epistola Pauli, parte 2. disputatione de Ecclesia, satis ante medium à §. Angeli etiam*; Albertinus, *tomo 1. Corollario 3. Theologico*, from the third Philosophical principle, *quæstione 3. à numero 10.*; Valentia, *supra (tomo 3. disputatione 1. quæstione 1. puncto 7.) in §. 38. versic. Secunda ratio*, although his proof concludes nothing. The rest may be seen in the Authors cited above. Thus far Suarez.

38. Antoninus Diana, in the sixth resolution cited, having inquired, *Whether it be altogether of faith that, e.g., this individual Innocent X is the true Pontiff, and the true successor of Peter?*, and having recounted for the negative side Bañes 2. 2. *quæstione 1. articulo 10. dubio 2. ad 2.*, Cajetan, 2. 2. *quæstione 1. articulo 3. ad 4.*, Castro, *adversus hæreses, libro 1. capite 9.*, holds the affirmative, with Card. de Lugo, *de Fide, disputatione 5. sectione 13. §. 5. numero 316.*; Suarez, *de Fide, disputatione 5. sectione 8. numero 12.*; Oviedo, *de Fide, controversia 4. puncto 7. numero 86.*; Hurtado, *loco citato*; Arriaga, in *Cursu Theologico*, *tomo 5. disputatione 7. sectione 8. numero 50. cum sequentibus*; Tanner, *tomo 3. disputatione 1. quæstione 1. dubio 5 numero 146.*; Castro Palao, *tomo 1. tractatu 4. disp. 1. pun. 5. §. 2. numero 9. cum sequentibus*; Amico in *Cursu Theologico*, *tomo 3. disp. 6. sect. 5. numero 152.*; Gerund. *de Episcopo, to. 2 lib. 5. disp. 3. num. 56.*; Comitulus, *resp. libr. 1. quæst. 99.*; Valentina, *ubi supra; quæstione 5. numero 39.*; Sylvius, in *Controversis Fidei, lib. 4. quæst. 2. artic. 8.*; Peuronus, *de Reg. Aristocratia, to. 2. capite 8. per totum.*; Verricelli, in *Quæstionum Moralium tractatu 8. quæst. 24. num 7.*; Poncius, in *Cursu Theologico, disp. 28. quæst. 1. conclusione 9. numero 13. & 14.*; John of St. Thomas, 2. 2. *quæst. 1. disput. 8. artic. 2. per totum.*; Adrian Peter

de Walenburch, in *Examine principiorum Fidei*, par. 2. controvers. 7. numero 50.; Bordonus, in *Sacro Tribunali*, capite 5. quæst. 6. num. 16.; and Bonacina, loco citato.

39. And Diana adds: Our opinion seems to be the opinion of Augustine, tom. 6. in *Epistol. contra potest. Donat. & tom. 2. epist. 115.*, of Irenæus, lib. 3. capite 3., of Basil, Ambrose, Jerome, whom Bañes reports, d. art. 10. de *Authoitate Papæ*. And the Councils favor it, he says: for the Sixth General confessed Agatho to be the true Pontiff, as that of Chalcedon confessed Leo, and the Milevitan, Innocent III. And in capite de *Libellis dist. 20.*, Silverius, Zosimus, Innocent, Siricius, Celestine, Leo, Hilary, Gelasius, Hormisdas, and Gregory are approved, by Pope Leo the Fourth, as true and legitimate Pontiffs. And to this opinion great strength (says Diana himself) is yielded by Clement the Eighth, who, on the testimony of Puente Hurtado, *ubi supra*, imprisoned certain Doctors who then judged the opposite, ordering them to go to Rome, to render an account of that opinion.

40. For the establishing of this opinion, Diana supposes that the Supreme Pontiff can be considered in two ways. *First*, when he is elected and adored illegitimately, or with a suspicion of illegitimacy. *Secondly*, when he is so legitimately elected and adored that the whole Church receives him, as now (he says) our Lord Innocent X — but I: as now Innocent XI — without any vestige of controversy holds the helm of the Christian Commonwealth, and the keys of Peter. If we speak of the Pontiff in the first consideration (says Diana), there is no question: because so long as there is a probable foundation concerning the illegitimacy of the Pontiff, it cannot be believed with divine faith that he is the successor of Peter: because divine faith cannot be exercised when there is room for prudent hesitation; but a probable foundation affords occasion for prudent hesitation. Wherefore the Church does not rest until, every foundation for doubting being removed [?], the occasions of schisms are taken away. The question, therefore, is in the second consideration: Whether it is to be believed with Divine Faith that Innocent the Eleventh, and other Pontiffs peacefully received, are the legitimate successors of Peter. And Diana answers that it is to be believed with Divine faith that all and each of the Pontiffs of this kind are the legitimate successors of Peter. And indeed in this sense Suarez holds this opinion, there: *After he has been received by the sufficient consent of the whole Church*; and others ought to hold it.

41. This opinion is proved *first* from the Bull of Martin V, which is had in the Council of Constance, in which he disposes that heretics returning to the Church should believe that the Pope canonically elected, whoever he shall be for the time being (his name being expressed), is the successor of Peter, etc. Therefore the Council supposes that now, determinately concerning the present Pope, e.g., Innocent XI, his name being expressed, it must be believed that he is the successor of Peter.

42. *Secondly*, because many Councils determinately acknowledge as such a successor of Peter that Pontiff who then presided: which many Fathers of the Church also did [?], not a few of whom have been recounted *supra*, *numero 4. & 80*. But there is no greater reason concerning one than concerning another. Therefore the same is to be said of all who are canonically elected and received by the whole Church.
43. *Thirdly*, because if it is not established of faith that Pius IV was the true Pontiff, neither will it be established that the Council of Trent is valid, since it received all its force from his approbation. But that is well-nigh heretical.
44. *Fourthly*, because if it were not of faith that this individual Pontiff, e.g., Innocent XI, is the true Pontiff and successor of St. Peter, whatever is believed as certain of faith concerning the Judge of controversies in the Church would beyond doubt be ridiculous; for how am I bound to believe of faith that a Judge of controversies is given in the Church, if I cannot, from faith, say who he is? For to what would an assent concerning the, as it were, vague existence of such a Judge serve for practice? We should assuredly not be bound from faith, in the said controversies, to go to the Pope. For anyone could say: faith teaches only that I am bound to go to the Judge of controversies; but it does not tell me that he is Innocent XI. Therefore, from faith, I am not bound to go to him, or to believe him deciding. Therefore, that what is said of the Judge of controversies may not be ridiculous, it must be said that it is of faith that Innocent XI is the true Pontiff and successor of St. Peter.
45. *Fifthly* it is proved, because every proposition of faith can be inferred from two propositions of faith, and also, as others hold, from one of faith and another contained in the natural light. But this proposition, *The Pope defining cannot err*, is certain of faith. Therefore it can be inferred from two premises, in the manner stated; which nevertheless can in no way be done, as will be plain to one who runs through it, unless this proposition be of faith: *This Pontiff defining is the true Pope*. For in whatever syllogism that conclusion be inferred, *The Pope defining cannot err*, there must be assumed as the minor, *This Pontiff defining is the true Pope*, which, since it is not known by the natural light, must necessarily be of faith; otherwise the conclusion would not be of faith.
46. But to this argument Bañes answers, *ubi supra*, that it is not required, in order that some conclusion of faith be inferred, that both premises be of faith, or one of faith and the other evident; but that it suffices that one be of faith and the other morally certain: because then the conclusion follows from that morally certain proposition not as from a cause, but as from a condition without which not, or as applying it. And he adduces the Example of a preacher, who, if he duly proposes to you the Evangelical doctrine, you are bound with divine faith to assent to the truths proposed by him: although nevertheless it is not certain with divine faith that this preacher is of infallible truth.

47. But Diana replies, and intends to preclude the solution, by an argument drawn from an inconvenience: because if that were true, it would follow that this proposition is of faith: *under this individual consecrated Host is the Body of Christ*: because in truth it is inferred by an evident consequence from one [proposition] of faith, such as is this: *In every duly consecrated Host is the Body of Christ*, and moreover it is inferred, as from a condition and as applying, from another morally certain one, namely: *This Host is duly consecrated*: Therefore *under this Host is the Body of Christ* will be a proposition of faith.

The same argument can be formed of these propositions: *This baptized infant receives grace*: *This man who is ordained is a Priest*: and of others like them: which it is ascertained among all are not of faith, since falsity can underlie them, from a defect of intention in the one baptizing, ordaining, and consecrating. Nor does the example of the preacher stand in the way, because although the preacher, in other matters, is not of infallible truth, yet as he here and now preaches, you must believe him to be of infallible truth; since you are obliged to assent to his words with divine faith.

1. Nor does it stand against our opinion, if it be said: It is not certain of faith that Innocent XI is baptized, or that no substantial defect intervened in his election. Therefore it is not of faith that Innocent XI is the true and legitimate Pontiff, successor of Peter, and of infallible truth. For it does not stand in the way, because although the antecedent is not of faith, the consequent nevertheless is, after he has by the common consent of the Church been held for the true Pontiff and successor of Peter: because she, since she is the pillar of truth, cannot err in that consent. These things being supposed, be it as follows.

CONCLUSION I.

1. It is to be held with all certitude that the aforesaid propositions are truly condemned as scandalous, so that neither by an internal nor by an external act can anyone form a doubt about this truth.

I prove this conclusion *first*. It is altogether certain and true that the Pontiff, and legitimate successor of Peter in the Roman See, *ex Cathedra*, or as Supreme Pontiff, and not as a particular Doctor, in handing on or in prohibiting to all the faithful of Christ a doctrine not only of Faith but also of morals, cannot err — namely, by handing on a false doctrine, noxious and prejudicial to the salvation of souls, and by prohibiting a true one profitable to the said salvation. Therefore it is also altogether certain and true that no one

can, either by an internal or by an external act, call into doubt that the aforesaid propositions condemned *ex Cathedra* by Alexander the Seventh are truly such, and are to be held as such.

1. The antecedent is known; for that which it contains in the first place is that the true and legitimate Roman Pontiff succeeds the Apostle Peter in the primacy of the Church, and in the power delivered to him by Christ the Lord, *Joannis 21.*, when he said, *Feed my sheep*. This Catholic truth was established above in the 4th Notable, or supposition, *à numero 4. ad numer. 8. inclusive*, out of very many Saints, Fathers of the Church, Councils, and Supreme Pontiffs; and indeed so efficaciously that it cannot be denied by any Catholic, or called into doubt.
2. Secondly, it contains that the Supreme Pontiff — granted that he can err inasmuch as he is a particular or private person, and as a particular Doctor, and not only in the doctrine of morals but also of faith, according to those things which have been said *numero 12. 61. 62. 67. & 70.*; and granted that he can err, even as head of the Church, in controversies of fact, according to what was handed down *numero 11.* — nevertheless in neither Doctrine, of Faith and of morals, can he err, inasmuch as he is Head, Doctor, and Pastor of the Church, so as to teach her as such, as it were *ex Cathedra*, or inasmuch as he uses the Magisterium and the power of feeding the faithful of Christ delivered to him in Peter by the same Christ, and to all who legitimately sit in the Apostolic See, as was said *numero 17. & sequentibus*, as regards matters of Faith, and as regards matters of morals, *à numero 52. ad 56.*, and signally, *num. 74. 75. & 76.*
3. The consequence is shown, because that which it affirms is altogether established in the Church, namely, that Alexander the Seventh condemned and prohibited the said propositions, not as a particular Doctor and as a private person, but as universal Doctor and Pastor of the Church, and from the Chair of Peter. Which indeed becomes most evident from the inspection of the Decrees themselves. For in the first I read thus.
4. *Our Most Holy Lord has heard, not without great grief of his mind, that very many opinions relaxing Christian discipline and bringing on the ruin of souls, partly antiquated, are again being raised up, partly are newly coming forth, and that that utmost license of luxuriating wits is daily growing greater, through which, in matters pertaining to conscience, a manner of opining has crept in altogether alien from Evangelical simplicity and from the doctrine of the holy Fathers; and which, if the faithful should follow it as a rule in practice [?], an immense corruption of Christian life would burst in. Wherefore, lest at any time it should happen that the way of salvation — which the supreme truth, God, whose words remain for ever, has defined to be strait — should be widened, or rather perverted, to the ruin of souls, the same our Most Holy Lord, that he might, out of his Pastoral solicitude, call back the Sheep*

committed to him from this sort of spacious and broad way, by which one goes to perdition, into the right path, seriously committed the examination of the same opinions to several Masters in Sacred Theology, and then to the Most Eminent and Most Reverend Lord Cardinals, General Inquisitors against heretical pravity; who, vigorously undertaking so great a business, and diligently applying themselves to it, and the below-written propositions having been maturely discussed down to this day, set forth their suffrages upon each one of them singly to His Holiness.

5. In which exordium of the Decree there are indeed several things that come to be weighed as pertinent to the matter. The *first* is that Alexander used the counsels and suffrages, not only of very many Masters in Sacred Theology, but also of the Sacred Congregation of the Most Eminent Cardinals, General Inquisitors against heretical pravity, after a mature examination and diligent discussion of each single proposition: which he used, that he might bear himself in a human manner in adjudging the aforesaid propositions. For although the assistance of the Holy Spirit was not promised to him in Peter for defining matters of Faith and of morals dependently upon anyone's counsel or assent, yet, that he may act lawfully and prudently, he needs another's counsel, as was said *numero 45. & 46.*: which assuredly would not have been sought by Alexander, and much less from so many and such Counsellors and Consultors, if he had been about to proceed as a private Doctor.
6. The second thing that comes to be weighed is that Alexander published the Decree with this mind, *that he might, out of his Pastoral solicitude, call back the Sheep committed to him from the spacious and broad way, by which one goes to perdition, into the right path.* Which clause of the Decree most evidently demonstrates that its Framers proceeded, not as a private person and as a particular Doctor, but as universal Doctor and Pastor of the Church: for as such were his Sheep committed by Christ to Peter, and in Peter to Alexander, and not as to Fabio Chigi.
7. And finally the same truth is demonstrated from the ending of each Decree: *He has established (it is said in both places) and decreed that the aforesaid propositions, and each one of them, are, at the least, to be condemned and prohibited as scandalous, even as he does condemn and prohibit them; so that whosoever shall have taught, defended, or published them, either conjointly or severally, or shall have treated of them, even disputatively, publicly or privately, unless perchance by way of impugning them, shall ipso facto incur Excommunication, from which he cannot (except at the point of death) be absolved by any other, however resplendent with dignity, save by the Roman Pontiff existing for the time being. Moreover he strictly, in virtue of Holy Obedience, and under the threat of the divine Judgment, forbids all the faithful of Christ, of whatsoever condition, dignity, and state, even such as are worthy of most special note, to reduce the aforesaid opinions, or any of*

them, to practice. It is demonstrated, therefore, from these endings of the Decrees, that Alexander the Seventh proceeded as Supreme Pontiff, because as a particular person he could not condemn and prohibit those opinions, especially [not] to all the faithful of Christ of whatsoever condition, dignity, and state, and much less subject them to a formal precept, and to an excommunication reserved to the Apostolic See.

8. For us is John de Cardenas, in *Crisi Theologica, parte 1. tractatu 1. disputat. 9. capit. 20. articulo 3.*, where, having said that for the Roman Pontiff to speak *ex Cathedra*, to teach the Church, to speak to the Church, and to speak as Head of the Church, are altogether four synonyms, and of entirely the same signification, he says: But what is it for the Pontiff to speak *ex Cathedra*, and as Head of the Church? Fr. Valentia excellently explained it, 2. 2. *puncto 7. §. 39.*, saying: That the Supreme Pontiff then truly defines, as Head of the Church, when he should issue a Decree for the universal Church, and one which he should will to be by the faithful indubitably admitted; which the same is handed down by Fr. Suarez, *contra Regem Angliæ, libro 1. capite 6. numero 15. & 16.*, and Fr. Granado, 2. 2. *controvers. 1. tractat. 7. disputat. 2. sect. 1. numero 1.*, and commonly the Doctors.
9. And Cardenas at once pursues, saying: Hence it manifestly appears that this Decree is of Alexander VII speaking *ex Cathedra*, teaching the Church, and as Head of the Church. *First.* Because he commanded this Decree to be published in his own Name, just as the other universal laws are promulgated.
10. *Secondly.* For he then decrees as Head of the Church, when he issues a Decree for the universal Church, and wills it to be indubitably admitted by all the faithful: but thus he issued this Decree: Therefore in it he speaks *ex Cathedra*, and as Head of the Church. The minor is plain, for in the last period it is said: *In virtue of holy obedience, and under the threat of the divine Judgment, he forbids all the faithful of Christ, of whatsoever condition, dignity, and state, even such as are worthy of most special note, &c.* Likewise it is established from the proem, where the ruin arising from the aforesaid propositions is said to be universal, there: *an immense corruption of Christian life would burst in.* And that a universal remedy also is required for all the sheep committed to him, in those words: *That he might, out of his Pastoral solicitude, call back the sheep entrusted to him from this sort of spacious and broad way, by which one goes to perdition, into the right path.*
11. But when the Pontiff decrees something incidentally, and in passing, even in matter of Faith and of morals, he does not then speak *ex Cathedra*, nor decree as Head of the Church. It is plain. Because that which the Pontiff so speaks, he does not intend to be indubitably admitted by the faithful. Therefore, when Nicholas I, *cap. A quodam Judæo, de Consecration. distantia 4.*, said that Baptism conferred in the

name of Christ is valid, he did not indeed say this as Head of the Church, because he said it incidentally and in passing, since he had taken up for defining only whether Baptism conferred by a Jew is valid. All the aforesaid, Fr. Cardenas.

12. *Secondly* our principal conclusion is proved. Without error in Faith it cannot be denied that the true and legitimate Roman Pontiff, successor of Peter, was instituted in Peter by Christ as Pastor and Doctor of the whole Catholic Church, *Joannis ultimo* saying: *Feed my sheep*; nor that the whole Church is bound to hear and to follow him, as Bellarmine well infers from that place, *lib. 1. supra cit. numero 33. & lib. 4. capite 2. versic. Deinde, & capite 5. vers. Ac ut rem*, and Suarez, *de Fide, disputat. 5. sect. 8. numero 9.*, recounted also above, *numero 13. & 67.* But if the Pontiff should err, by handing on a false doctrine, or by prohibiting a true one, even in moral matters, the whole Church too would err, in hearing and following him. But this is not to be said, since it is opposed to Faith, and to the promise of Christ, *Joannis 16.*, there: *When that Spirit of truth shall come, he will teach you all truth*; and since the Church is the pillar of truth. Therefore, since it must be altogether certain that Pope Alexander the Seventh could not err in the condemnation and prohibition of the said moral propositions, it is to be held as altogether certain — so that no room remains for internal or external doubt — that such propositions are truly scandalous and prohibited.
13. *Thirdly* it is proved by the reason which Suarez uses, *tomo 4. de Relig. lib. 3. capite 4. Corollar. 2.*, for proving that the admission of Scholastics into the Society of Jesus constitutes them in a true and proper Religious state, the twofold Constitution of Gregory XIII, *Quanto fructuosius* and *Ascendente Domino*, being supposed; thus he says: *Secondly* it is inferred from what has been said how certain is the truth declared by the Pontiff. (In the twofold Constitution recounted.) For I judge it to be altogether infallible, so that it cannot be denied without error in Faith. The reason is (this I adduce for my own conclusion) because the sentence of the Pontiff, in those things which pertain to doctrine, contains an infallible certitude from the institution and promise of Christ: *I have prayed for thee, that thy faith fail not; and thou, being once converted, confirm thy brethren. Lucæ 22. & Mathæi 16. Thou art Peter, and upon this rock I will build my Church, and the gates of hell shall not prevail against her.* And the concession was made, *Joannis 21. Feed my sheep.* Which testimonies have been so understood by the Church, and confirmed and declared by perpetual tradition, and by the definition of the Fathers, of the Councils, and of the Pontiffs themselves. (For the rest see *supra numero 71.*) But greatly diminished would the providence of Christ the Lord concerning his Church have been, if in deciding such questions *ex Cathedra* he should permit his Vicar to fall. Thus Fr. Suarez. From which it well follows that it must be altogether certain that the propositions condemned and prohibited by Alexander the Seventh as scandalous are truly such. Otherwise the sentence of the Pontiff, in those things which pertain to morals, which

pertain to doctrine, would neither have nor contain an infallible certitude; which would be against the institution, the promise, and the concession of Christ, and against the tradition of the Church, and the Definitions of the Fathers, of the Councils, and of the Supreme Pontiffs. Therefore it must be altogether certain that the propositions condemned as scandalous by Alexander the Seventh are truly such.

14. Suarez confirms his assumption, concerning the fact that the Scholars of his Society are true Religious, and that this *cannot be denied without error in Faith*, from the doctrine of all Theologians, and of all Catholics, who hold it for certain that the Supreme Pontiff cannot err in handing on to the Church the doctrine of morals (I render his words): for this doctrine pertains much to good morals, and from the opposite many absurd and scandalous things could be inferred in the Church; and conversely, if this declaration of the Pontiff could be false, from it many absurdities, and things against good morals, would follow: as that the Religious state would be changed into a non-Religious one, and that the vow of Religion would be fulfilled without the Religious state. And the like. Thus Suarez. If therefore all Theologians and Catholics hold it for certain that the Supreme Pontiff cannot err in handing on to the Church the doctrine of morals, and the doctrine handed on by Gregory XIII, concerning the fact that the Scholars of the Society are true Religious, pertains much to good morals, and from the opposite many absurdities against good morals would follow if the doctrine of Gregory could be false — why ought not the same to be said, if the doctrine handed on by Alexander in our twofold Decree could be false? Does it not pertain much to good morals that a man should at some time of his life elicit acts of Faith, Hope, and Charity? That a Knight, being challenged, should not accept a duel, lest he incur among others the mark of timidity? And so running through the other condemned propositions: Would not many absurdities against good morals follow from the opposites? Therefore it must be altogether certain that the propositions condemned by Alexander the Seventh as scandalous are truly scandalous, condemned, and prohibited.
15. For our conclusion there are present several other most grave Authors, some of whom, and their doctrines, it is well to produce and hand on for its corroboration and greater elucidation. For in the first place John Giles Trullench, *tomo 1. libro 1. in Decalog. capite 2. dubio 4. numero 18.*, after other things, wrote: From which it comes about that, if the Church defines some proposition to be heretical, or rash, or scandalous, *I believe it to be of Faith that it is worthy of such a censure*: because otherwise we should be obliged to confess that the Church can err in those things which pertain to Faith, against Paul *ad Thimot. 3.*, saying that the Church is the pillar and ground of truth.

16. Manuel Ambrose de Filguera, Clerk Minor, *en la Casos de Consciencia, tratado 13. de la Descommunion, cap. 1.*, after having set down in the seventh article the said Decrees of Alexander the Seventh, in the eighth article proposes and resolves certain doubts concerning them. The last is of the following tenor.

The sixth doubt is whether Alexander the Seventh could err in condemning as scandalous the said forty-five moral opinions, or in commanding that they be not reduced to practice; which is the same as to ask whether the Supreme Pontiff can err in laying down laws pertaining to morals. I answer that he cannot err. This resolution is taught *as of Faith* by St. Antoninus, 3. *par tit. 12. cap. 2. §. 2.*, Sylvester, *Fides, numero 2.*, Castro Palao, *tomo 1. tractatu 4. disputatione 1. pun. 5. §. 3. numero 4.*, and others who defend the same, saying *that it is little removed from Faith*, as Cano, *cap. citato* (that is, *libro 5. de Locis Theologicis, cap. 5.*), and others whom Master John of St. Thomas reports, 2. 2. *disputatione 9. artic. 3.* For it is of faith that the Supreme Pontiff cannot err in feeding the Faithful, who are his sheep. Now the Faithful are fed not only with the doctrine of Faith, but also with the honesty of wholesome morals, which is what Christ commanded to St. Peter and his successors; *therefore our resolution is of faith, or is little removed from it.* And thus the Pontiff cannot err in commanding anything contrary to the Divine or natural law. From which it is consequently inferred that Alexander the Seventh could not err in commanding that the said forty-five moral opinions should not be reduced to practice.

1. Father John de Cardenas, *in Crisi Theologica, tomo 1. disputatione 9. cap. 20. articulo 6.*, in the very kind of our case also, that of the Decrees of Alexander the Seventh, having inquired whether these Decrees are Pontifical Definitions, supposes that the word *Definition* is used in two ways. *First*, for the decision or declaration of an article of Faith. *Secondly*, for any decision or declaration whatsoever of the Pontiff which he hands on as altogether certain and indubitable. In which acceptance he says, *numer. 351.*, that when the Supreme Pontiff decides something in matter of doctrine as certain and without danger of erring, he is said to define it. *For to define, and to decide for certain, are the same.* Which being supposed, *numero 353.*, he says: And so, while the Roman Pontiff teaches the Church something in which he cannot err, he teaches it indeed as altogether certain, as is known from the terms. But what he teaches as altogether certain, that he expressly defines, even if he does not define it as an article of Faith: for to define, or to decide, is to declare a thing as altogether certain. For there are many things altogether certain in which the Pontiff cannot err, although they do not attain to the certitude of Faith. Thus there the said Author, and he at once pursues, in the following numbers.
2. These things being laid down, it must be said that these Decrees are definitions of the Pontiff in the second mode. It is evident. For the Pontiff defines in the second mode when he declares or affirms something for certain in a matter in which he

cannot err: But Alexander the Seventh affirms for certain that those propositions are scandalous, in a matter in which he cannot err. Therefore in that Decree the Pontiff truly defines. The consequence is legitimate. The major is established from the things said *numer. 351*. The minor also is plain, because he affirms those propositions to be scandalous, whereas they are nevertheless engaged in matter of morals: in which that the Roman Pontiff, speaking to the Church, cannot err, is established from the sixth chapter.

3. It is confirmed. For, as is established from *numero 352.*, the Decree of Clement the Eighth, by which he affirmed the opinion concerning absolution between those Absent to be false, rash, and scandalous, was a Definition of the Roman Chair, because he decided it for certain: Therefore, since Alexander the Seventh decides for certain that those propositions condemned by him are scandalous, it must be said that this is a definition.
4. Nor is it of avail if you say that for a formal definition it is required that the Pontiff say, *We define, we decide, we declare*, or something similar. For the word *We condemn*, in matter of doctrine in which the Pontiff cannot err, is a similar and equivalent word. For this — to condemn a doctrine as certainly scandalous — is the same as to decide and declare that it is scandalous.
5. Thus far Father Cardenas, *dicto cap. 20. art. 6.*, after he had said, *c. 6. art. 1. ejusdem Disputat. 9.*, and had there most amply proved, and in the following articles by demonstrations, that it is most certain among Catholic Doctors that the Roman Pontiff cannot err in matter of morals.
6. For my purpose, and for the proof of my conclusion, the aforesaid Father Cardenas adduces, in the same article 1, chapter 6, Sylvester, *in Summa, verbo Fides, numero 2.*, saying: *It pertains to faith to adhere to the determination of the Supreme Pontiff in those things which are of Faith; nay, even in those which regard good morals:* because in matters of this kind also the Church cannot err, and consequently neither can her Head, inasmuch as he is head, or inasmuch as he is Pontiff.
7. He also adduces Ferdinand Castro Palao, *tomo 1. tract. 4. disp. 1. pun. 5. §. 3. n. 4.*, teaching that it is of Faith that the Roman Pontiff cannot err in establishing something to be observed by the whole Church which is contrary to the divine or natural law. And he holds also (he adds) *that this is of Faith, speaking of a law or Constitution enacted for one Province, with Master Bannez, 2. 2. quæst. 1. artic. 16. dubio 6. conclus. 4.*
8. For this reason, that it is altogether certain (says Father Cardenas) that the Roman Pontiff cannot err in the approbation of Religious Orders, as regards their Constitutions and laws, as regards their moral honesty and goodness, St. Thomas

affirms, *Opusculo 19. capite 4.*, and Bannez, 2. 2. *quæstione prima, articulo 10. dubio octavo, conclusione quarta*, and he says the opposite conclusion to be heretical. And for the fact that it is of Faith he reports Palao, *loco citato*, §. 6. *numero secundo*, Diana, *tractatu de Infalibilitate Decretorum Pontificis parte undecima, resolutione 25.*, and in him, Amico, *tomo 4. disputatione 7. sectione 3. numero 79.*, and Francis del Castillo, *tomo 2. in 3. Sententiarum, disputatione 16. quæstione nona, numero 8.*, which three say that it is of Faith.

9. Where you will note *first*, that while the Authors say that the Pontiff cannot err in matter of Faith and of morals, they distinguish matter of morals from matter of Faith: and therefore he cannot err in matter of morals, not only when he hands on this matter by defining it to be of Faith, but also when he teaches matter of morals even without the definition of an article of Faith.
10. Hence it is plain that Caramuel stands for this assertion, *in Theologia Fundamentali, numero 161. fundamento tertio*. For *numero 160.*, for a foundation, when he had laid down this proposition: *The true Church cannot err in substantial articles*, in the aforesaid *numero 161.* he declares which are the substantial articles: and he says that those are accidental which *concern neither morals nor Faith*. From which it is plain that the substantial ones, in which she cannot err, are not only the articles of Faith, but also those of morals, handed on without a definition of Faith. (Therefore it must be altogether certain that the Supreme Pontiff cannot err in substantial matters, such as are those which are contained in the aforesaid condemnation of Alexander the Seventh: for all those concern morals.)
11. You will note *secondly*, that the aforesaid Authors not only affirm for certain that the Roman Pontiff cannot err in those things which he commands, namely by commanding base things, or by prohibiting honest ones, but also that he cannot err while by an express judgment he approves or reprobates morals, so as to approve vices, or condemn acts of virtue. All the aforesaid Father Cardenas says, *in prædicto articulo 1.*
12. Antoninus Diana Coordinatus, *tomo nono, tractatu quinto de Infalibilitate Decretorum Romani Pontificis extra Concilium, resolutione decima*, and in part 11, asks whether, when the Pontiff defines some proposition to be rash, erroneous, scandalous, etc., he is a heretic who should pertinaciously deny it to be such? Or whether it is only rash, erroneous, scandalous, etc.? And he answers. *Some affirm it to be heretical to deny this: because that which he defines is revealed to the Pontiff; and accordingly, he who pertinaciously denies what the Pontiff defines, denies a revealed object, and falls into heresy.*

13. But to the proposed question (that Doctor pursues) Turrianus thus answers, *in 2. 2. tomo primo, disputatione 55. dubio quinto*: It is evident that the Supreme Pontiff often condemns some proposition as heretical, or as erroneous, or rash; sometimes he declares a proposition to be of Faith; sometimes probable. We call in question, therefore, whether in assigning these censures the Church can err; but it is established from the things said to the first question that the Pontiff cannot err in definitions of Faith; we ask, therefore, whether he can err in assigning other censures?
14. To me indeed it is very certain that the Pontiff cannot err in these censures; for it is certain that in defining the articles of Faith, [and] truths, he cannot err, as I have said; but to assign these censures pertains to the truths of Faith. Therefore it is in no way to be admitted that he can err. And it is explained: because when he declares some proposition to be erroneous, plainly the definition pertains proximately to the truths of Faith, since an erroneous proposition is contrary to a conclusion evidently deduced from the principles of Faith: Therefore the Pontiff could not err in this censure, unless erring in some way concerning the truths of Faith. And the same judgment holds if he should declare some proposition to be next to error, or savoring of heresy.
15. Then, in the other censures of propositions, which do not seem to pertain so proximately to the doctrine of Faith — as when some proposition is called rash — it must also be said that the Pontiff cannot err: because it pertains to the doctrine and truth of the matters of the Christian Religion: for if he could err in this, the definition concerning the truth of Faith would not be altogether certain, because it could happen that he should condemn as rash some proposition which was more consonant to the principles of Faith than contrary to them, which is in no way to be admitted. And so I judge it to be an error to assert that the Pontiff can err in these Censures. Thus Turrianus, who, *in censura Theologica, quæ adest in tomo Selectarum Disputationum, in Centuria prima, dubio 56.*, having asked whether it deserves a censure to assert that the Pontiff can err concerning the censures of propositions, answers that it is certain that the Pontiff cannot err in assigning the censure of any proposition, because in things pertaining to doctrine he cannot err, and to assert the opposite is impious, scandalous, rash, and erroneous.
16. And indeed Coninck, *de Actibus supernat. disputatione octava, dubio octavo, numero 135*. (Diana pursues) teaches that he *who denies the aforesaid censures asserts something from which by an evident consequence heresy is deduced*; and my Most Eminent Lord Cardinal Lugo, *de Fide, disputatione vigesima, numero 109.*, asserts that such an assertion would be erroneous, and next to error; which Bañes had said before, *in 2. 2. D. Thomæ, quæstione 10. articulo 2.*

17. But Malderus, in 2. 2. *D. Thomæ, quæstione undecima, articulo secundo, membro quinto*, thinks a distinction must be made; for he says that it is indeed by revelation from God that the Church cannot err in definitions concerning doctrine, and thus that he who should deny this with pertinacity would be a heretic; but if he himself should affirm a proposition which the Church has judged to be rash, but true — unless he at the same time say that the Church errs in a censure of this kind — he will not be a heretic, but will incur an error next to heresy. For if this proposition be not rash, something follows against Faith, namely, that the Church errs in definitions concerning doctrine. And so a distinction must be made: For either he who denies this proposition to be rash intends only to say that it is true, and thus he will not be a heretic, even if he knows that the Church has determined that it is rash — for it can come about that he thinks it only probable that the Church cannot err in such matters, or that he knows indeed that the Church has condemned this as rash, and believes that whatever the Church condemns as rash is really such, but does not put these together so as to conclude that this is truly rash — or he intends pertinaciously to maintain that the Church errs in the censure of that proposition, and he will be a heretic.
18. And this opinion of Malderus (Diana adds) Father Oviedo also teaches, *de Fide, controversia 4. puncto 9. numero 124.*; for he asserts that one can pertinaciously deny a censure inflicted by the Church without judging that the Church can err, and accordingly that on this head he would be a heretic who should deny it — not precisely because he would deny the censure, since the Pontiff does not define this as revealed, but because he would deny the special assistance of the Holy Spirit, in virtue of which He will never permit the Pontiff to err, and against this assistance would assert that the Pontiff had in fact erred. Thus that Doctor; which things, as regards morals, seem to relieve little the one pertinaciously denying a proposition condemned by the Pontiff; for whether he denies it because he judges, or does not judge, that the Pontiff can err, or because he denies to him the assistance of the Holy Spirit, he will always be a heretic in denying the proposition.

CONCLUSION II.

1. The opinions condemned by Alexander the Seventh, and contained in the Decrees of which the title of the Question treats, lack all probability, and are altogether false after the said Decrees: so much so that they are not only not probable, that is, destitute of a grave foundation, but also positively improbable, that is, certainly false.
2. This conclusion Father John de Cardenas holds, in *Crisi Theologica, tractatu 1. disputatione nona, capite 20. articulo 8*. And it is proved as to the first part, concerning the non-probability of the condemned opinions: because it implies a

contradiction that a doctrine be probable, and resting on a prudent foundation, and at the same time, in the character of a moral doctrine, generate scandal and the ruin of souls. Because from the fact that in moral matter a doctrine is scandalizing, it is not prudent. For a prudent doctrine in matter of morals is that which preserves morals uncorrupted; but that which scandalizes, and brings ruin to souls, does not bring it otherwise than inasmuch as it corrupts morals, and inclines and provokes to sin. Therefore by the very fact that the propositions are scandalous, they are necessarily not probable.

3. But as to the second part of the conclusion, in order that we may prove it, some things must be supposed. The *first* is that there is a great difference between that proposition which in matter of morals is judged scandalous by the judgment of any private Doctor, and that which in like matter is asserted to be scandalous by the express judgment of the Supreme Pontiff as such, and speaking *ex Cathedra*. For this express judgment of the Pope has two things which the judgment of any private Doctor lacks: namely, certitude and perpetuity. Certitude indeed: because the Pope speaking *ex Cathedra* to the Church, in matter of morals, cannot err, as Fr. Cardenas amply proves, *dicta disp. 9. capite 6.*, and we above, *num. 99. & seqq.*
4. The judgment of the Pope speaking *ex Cathedra* has perpetuity also: because the other private Doctors, by this proposition, *This assertion is not probable*, signify that there is not at present a grave foundation for that assertion; and therefore among them it is equivalent to this: *This is an assertion not having a grave foundation, so long as no other foundation appears beyond those which are at present brought forward for it.* And therefore room is left that, if afterwards a grave foundation should appear, the assertion may pass from non-probable into probable. That this has in fact so happened is certain, since many propositions which formerly were not probable are now probable, a grave foundation having appeared anew. But the Pope, when he speaks to the Church from the See of Peter, and denies the probability of an opinion, or affirms it to be scandalous, teaches this and declares it to the Church in perpetuity, as to be maintained at all times. And therefore he does not say only that at present no grave foundation appears for it, but that none ever will appear, and that it is always to be reputed scandalous. Whence he leaves an utter despair of its probability, or of the removal of the scandal which the proposition itself carries with it.
5. The *second* thing which we suppose is that, where someone, without danger of erring, hands on that a proposition is false, that proposition is certainly false. And the reason is, because immunity from the danger of erring involves certitude: but where there is certitude, there is no contingency of erring; and where there is contingency

of erring, there is no certitude. Likewise, where the contingency of erring is excluded, certitude is present; and where certitude is excluded, the contingency of erring is built up and affirmed.

6. The *third* is that a scandalous proposition can be considered in two ways: either as scandalous *a parte rei*, and before any estimation of men whatsoever; or as scandalous, the estimation of men being presupposed. For it happens sometimes that an opinion is true *a parte rei*, but, because men are ignorant of the grave foundation of its truth, it comes about that that proposition is not probable, since without a grave foundation it cannot be probable. In this case, therefore, it is not scandalous *a parte rei*, since it contains a doctrine true *a parte rei*, and lawful, and harmless; yet, the estimation of men being supposed, which does not reach to the foundation of the truth, it is scandalous, since it persuades one to direct conscience without an apparent grave foundation.
7. These things being supposed, the second part of our conclusion is proved, namely, that the propositions condemned by Pope Alexander VII as scandalous are positively improbable and certainly false. *First*, because when the Pope, speaking *ex Cathedra*, condemns by an express judgment, in matter of morals, some proposition as scandalous, he condemns it as false: but that judgment of the Pope in matter of morals is certain: therefore such a proposition turns out certainly false. The consequence is evident, because as often as the judgment concerning the falsity of a proposition is certain, the proposition turns out certainly false.
8. The major is clearly established, and is shown. Because a proposition which the Roman Pontiff *ex Cathedra* in matter of morals condemns as scandalous *a parte rei* cannot be true. For if *a parte rei* it were true, its object would *a parte rei* be lawful, and only through ignorance would it be unlawful: therefore the Roman Pontiff would err, if *ex Cathedra* in matter of morals he should condemn as unlawful an object lawful *a parte rei*. But the Roman Pontiff speaking *ex Cathedra* cannot err in matter of morals: therefore he cannot condemn as unlawful an object lawful *a parte rei*. Therefore the Roman Pontiff, by the very fact that *ex Cathedra* he condemns a proposition in matter of morals as scandalous, [establishes that] it cannot be true *a parte rei*: therefore by the very fact that he condemns it as scandalous, he condemns it as false.
9. But another thing must be said when a private Doctor (and I say the same of the Pope not speaking *ex Cathedra*) judges some proposition scandalous: because for this private judgment it suffices that for that proposition, noted as scandalous, no grave foundation appear: because a private Doctor is capable of ignorance (inasmuch as ignorance means any defect of knowledge whatsoever) concerning that which is *a parte rei*. But since the Supreme Pontiff speaking *ex Cathedra* is not capable of ignorance in the express judgment which he forms in matter of morals, on account of

the infallible assistance of the Holy Spirit in a matter so grave, hence it is that, while he affirms a proposition in matter of morals to be scandalous, it could not be true *a parte rei*.

10. It is confirmed. When the Roman Pontiff condemns *ex Cathedra* a proposition as scandalous in matter of morals, he does not condemn it as scandalous from a presupposed ignorance of men, but as truly and *a parte rei* scandalous; otherwise he would err in matter of morals, if he should reprobate as scandalous an object lawful and honest *a parte rei*: but a doctrine which is *a parte rei* scandalous cannot *a parte rei* be true: therefore *a parte rei* that condemned doctrine cannot be true. And since that judgment of the Pope *ex Cathedra* is certain, that proposition remains certainly false.
11. *Secondly* the second part of our conclusion is proved. While the Supreme Pontiff, teaching the Church from the Chair in matter of morals, defines a proposition to be scandalous, by force of that oracle it remains certainly and in perpetuity destitute of a grave foundation, and with a certain and utter despair of its probability: but a proposition which remains certainly and in perpetuity not probable, and with a certain and utter despair of its probability, remains certainly false, and thus positively improbable: therefore a proposition which the Supreme Pontiff, teaching the Church *ex Cathedra* in matter of morals, defines to be scandalous, remains certainly false and positively improbable. The consequence is plain. But the major is established from the things said *supra numero 128*.
12. And the minor is proved. When a proposition is true *a parte rei*, no certain principle stands in the way but that at some time some grave foundation may appear for promoting the aforesaid truth: for against truth, or against its foundation, no certain principle can exist which is really certain: therefore when there is a certain principle against the foundation of some proposition, such a proposition cannot be true: therefore it is certainly false. But when the Supreme Pontiff in matter of morals by an express judgment affirms in perpetuity that a proposition is not probable, that certain principle excludes in perpetuity any grave foundation whatsoever of that proposition: therefore in that case the proposition so condemned cannot be true: therefore necessarily and most certainly it is false.
13. Where it must be noted that, when a private Doctor says some proposition to be positively improbable, if he says the truth, he takes away entirely the hope, or the fear, of a future probability; and that the proposition cannot pass from improbable into probable. For he cannot assert this save from a true principle, since to be positively improbable is the same as to be certainly false: but a certain principle, which compels one to assert the falsity of a proposition, leaves no fear concerning the opposite.

14. I conclude by saying that, for a proposition in matter of morals to be scandalous, it is verified in this, that it be not probable, or in this, that it lack a grave foundation in the estimation of men, since it directs consciences to act in morals without a grave foundation, although *a parte rei* it be perhaps true. But since this happens from a defect of knowledge in matter of morals, which can by no means fall upon the Roman Pontiff teaching the Church *ex Cathedra*, hence it is that the said Pontiff, as such, and as teaching *ex Cathedra*, cannot teach some opinion to be scandalous, if *a parte rei* it be true. Whence, as often as the Pope *ex Cathedra* in matter of morals affirms [a proposition to be scandalous, he affirms it] to be positively improbable [?]. And thus, although in saying it scandalous he at the same time says that it is not probable, by that very fact he affirms it to be positively improbable. It is well nevertheless here to recount Cardinal de Lugo, *de Virtute Fidei divinæ, disp. 20. sect. 3. n. 99. pag. 555.*, breaking forth into what follows.

A scandalous proposition must be understood as one which affords occasion of spiritual ruin, by inclining hearers to sins, or by calling them away from the exercise of virtues. Such are the propositions of those who detract from the Religious state, and likewise of those who exaggerate the dangers of pious exercises, whence men grow lukewarm, and fear lest in these a danger lie hidden for them. Likewise, if anyone should say to a people gathering for the veneration of the Eucharist, or of some Saint: *who knows whether this Host be consecrated? who knows whether this be the body of that Saint, and not the body of some malefactor, substituted in his place?* All which things, in some true sense, can be not against faith; yet they generate scandal, and remove men from the exercise of piety. Another example Suarez brings forward, *numero 19.*, namely, if anyone should say absolutely that images are not to be adored. This proposition, however, is more than scandalous, since it errs also concerning the very dogma of faith, as is established from the Council of Trent, *sessione 15.*, and from the formula of the profession of faith published by Pius IV, and which all Bishops and other persons are bound to emit. Thus far Cardinal de Lugo.

CONCLUSION III.

1. So all and each of the opinions condemned by Pope Alexander the Seventh must be banished from all disputation, not only public, but even secret or private, save by way of impugning them; so that whosoever shall have brought them into disputation sins mortally, and incurs an excommunication reserved to the Apostolic See.
2. So Felguera teaches, *in Sum. tract. 13. cap. 1. artic. 8. duda 3.* This conclusion needs no other proof whatsoever than the recounting of the words of each Decree. For in the first it is said thus. *Which things being done, while care and study are bestowed on the examination of like propositions, meanwhile the same Most Holy Lord, the matter having been maturely considered, has established and decreed that the*

aforesaid propositions, and each one of them, are, at the least, to be condemned and prohibited as scandalous, even as he does condemn and prohibit them; so that whosoever shall have taught, defended, or published them, either conjointly or severally, or shall have treated of them, even disputatively, publicly or privately, unless perchance by way of impugning them, shall ipso facto incur excommunication, from which he cannot (except at the point of death) be absolved by any other, however resplendent with dignity, save by the Roman Pontiff existing for the time being.

3. But in the second Decree I read the following. *These things being maturely weighed, the same Most Holy Lord has established and decreed that the aforesaid propositions, and each one of them, are, at the least, to be condemned and prohibited as scandalous, even as he does condemn and prohibit them; so that whosoever shall have taught, defended, published them, or shall have treated of them, even disputatively, publicly or privately, unless perchance by way of impugning them, shall ipso facto incur excommunication, from which he cannot (except at the point of death) be absolved by any other, however resplendent with dignity, save by the Roman Pontiff existing for the time being.* These things are had in each Decree.
4. From which it manifestly follows that he sinned mortally, and contracted the excommunication reserved to the Pope, who — having been certified by me myself of the tenor of the said Decrees — asserted on various occasions before me and others that the aforesaid Decrees by no means take away and remove probability from the opinions condemned and prohibited by those very Decrees, but that they remain in that probability in which they were before.

CONCLUSION IV.

1. Whatsoever member of the faithful shall have reduced to practice any of the opinions condemned and prohibited by Alexander the Seventh, by acting according to it, commits a deadly sin. This Filguera holds, *dicta duda 3.*

This conclusion is so clearly defined in each Decree that Alexander leaves no ground for doubting on the point: for he says at the end of each: *Moreover, strictly, in virtue of holy obedience, and under the threat of the divine judgment, he forbids all the faithful of Christ, of whatsoever condition, dignity, and state, even such as are worthy of special and most special note, to reduce the aforesaid opinions, or any of them, to practice.* For the clause *In virtue of holy obedience* I have said, in *Disquisitionum tomo 1. tract. 7. disquisitione 6. numero 6.*, imports the same as under pain of the sin of obedience, so that transgressors incur the sin of disobedience, which is indeed most grave, since we, all the Faithful, are bound to obey the Supreme Prince of the Church, and the General Vicar of Christ our Lord, the Roman Pontiff: and upon the transgressor the penalty of deposition

is inflicted by the Canon, where another has not been found established, as John Baptist Ventriglia teaches, in *Praxi rerum notabilium, annotatione 52. de Electione sepulturæ*, §. unico, numero 36., with Fuscus, *de Visitatione, libro 1. capite 31. numero 8. & 9.* But since the said penalty is so grave, the fault for which it is inflicted will be deadly, as the said Ventriglia teaches, the Gloss in *cap. Animarum, el 1. de Sepulturis, libro 6.*, and Trullench, *tomo 3. tractatu de Jure Parochi, capite 9. dubio 5. numero 15.* And it is plain from this, that the penalty is the measure of the fault, *cap. Cognoscentur, el 2. de Constitutionibus*, where the Gloss, *verbo Culpa caret*, and the marginal [Gloss]. The Gloss also in *cap. Sine culpa, el 23. de Regulis Juris in 6.*; and the penalty ought to correspond to the fault, and to be commensurate with the offense. Barbosa *axiomate 181. numero 3.*, and I myself in *tomo 2. disquisitione quinta, numero 16. & disquisitione decima, numero 43.*

1. Besides which, the said clause (at least the gravity of the matter being supposed) induces an obligation under mortal [sin], by whatsoever legitimate Superior it be uttered, as I said *dicto tomo 1. disquisitione 6.*, with Pellizzarius, in *Manuali Regular. tomo 2. parte 1. tract. 9. cap. 3. numero 37.*, Bartholomew a Sancto Fausto, in *Thesaurio Religiosorum, libro 6. de Voto Obedientiæ, quæstione 11. numero 7.*, and Ascanius Tamburinus, *de Jure Abbatum, tomo 3. disput. 3. quæsito 6. numero 5.* And the said Bartholomew gives the reason, saying: The reason is, because the common usage is that these words indicate the mind of the Prelate to be to oblige unto mortal [sin]. And it is gathered (he adds) from the Clementine *Exivi, de Verborum significatione.*
2. The clause also, *He strictly forbids*, likewise induces mortal sin. So where I said just before, *num. 8.*, with Lezana, *tomo 2. verbo Clausula, num. 24.*; and it is gathered from the *Clementina 1. de Officio Judicis Ordinarii*, joined with the Marginal Gloss. For in the text Pope Clement the Fifth appended a similar clause, namely: *We strictly enjoin*: but the Gloss says thus: *If they neglect it, they sin mortally.*
3. The clause likewise, *under the threat of the Divine judgment*, imports the same as this: *Under the threat of eternal malediction*, which brings an eternal penalty, due to mortal sin, or for the transgression of the precept to which it is opposed: and thus it imports an obligation of not transgressing it, under deadly fault. The Gloss in *citato cap. Animarum, 1. de Sepult. in 6.*, there: Note, there: *Under the threat of eternal malediction*: that he who comes against this Constitution sins mortally. The same teach Trullench, *loco citato*, Ventriglia, *dicto num. 36.*, with John Andreas, in *capite Romana, §. Procuraciones, el 1. de Censibus, lib. 6.*, and there Lopus, *num. 1.*, Geminianus, *numero 8.*, Marius Alterius, *tomo 1. disput. 22. lib. 5. cap. 8.*, upon the word *Indignationem.*

4. But you will say: if any of the aforesaid clauses induces an obligation of not transgressing the Decrees of Alexander under deadly fault, to what purpose the appending of all of them in each Decree? I answer that none of them was appended superfluously, since a law ought not to have even one syllable superfluous and empty. Barbosa, *axiom.* 136. n. 15. *ex Glossa, verbo Tanquam, in c. Solitæ, de Majoritate, & obedientia*, Mandosius, *in Regul.* 9. *Cancel. quæst.* 4. n. 4., Gonzalez, *ad Regulam* 8. *Cancel. glossa* 22. nu. 5., and I myself, *in Disquisit.* tomo 2. *disq.* 11. *dub.* 17. n. 171. & 172. But he appended them for abundant caution, or for indicating his more earnest will concerning the condemnation and prohibition which Alexander VII was making of those 45 opinions, according to the things handed on by Pellizzarius *to.* 2. *tr.* 8. *c.* 4. n. 167., by Barbosa *axio.* 104., and concerning Clauses in general, n. 8., and by Lezana *to.* 3. *in Mare magnum Carmelitar.* §. 4. n. 16. *pag. mihi* 187., breaking forth into what follows.

5. That Pontiff uses these words: *in a firm, and solid, and stable state*: which import the same, and are as it were synonyms adjoined by him for the greater firmness of the matter: for the multiplication, or doubling, of words signifying the same denotes greater deliberation and earnest will. *L. Balista, ff. ad Trebell.* Bartholus, *in L. Cum scimus, n. 7. c. de Agriculis censitis, l. 11.* Decius, *in L. 1. n. 3. c. de Pact. & consil.* 51. *colum.* 2. & *consil.* 180. *col.* 3. Gutierrez, *Practic. Quæstionum lib. 3. quæst.* 17. n. 134. Tuschus, *Practic. conclusionum, tomo 4. conclus.* 28., and several others in Barbosa, *in tract. de Axiomatib. axiom.* 105. *num.* 1., especially because doubled words operate so that nothing can be opposed. Curtius, *in Consilio* 278. *num.* 18. Tuschus, *supra*; Barbosa, *supra, num.* 8.